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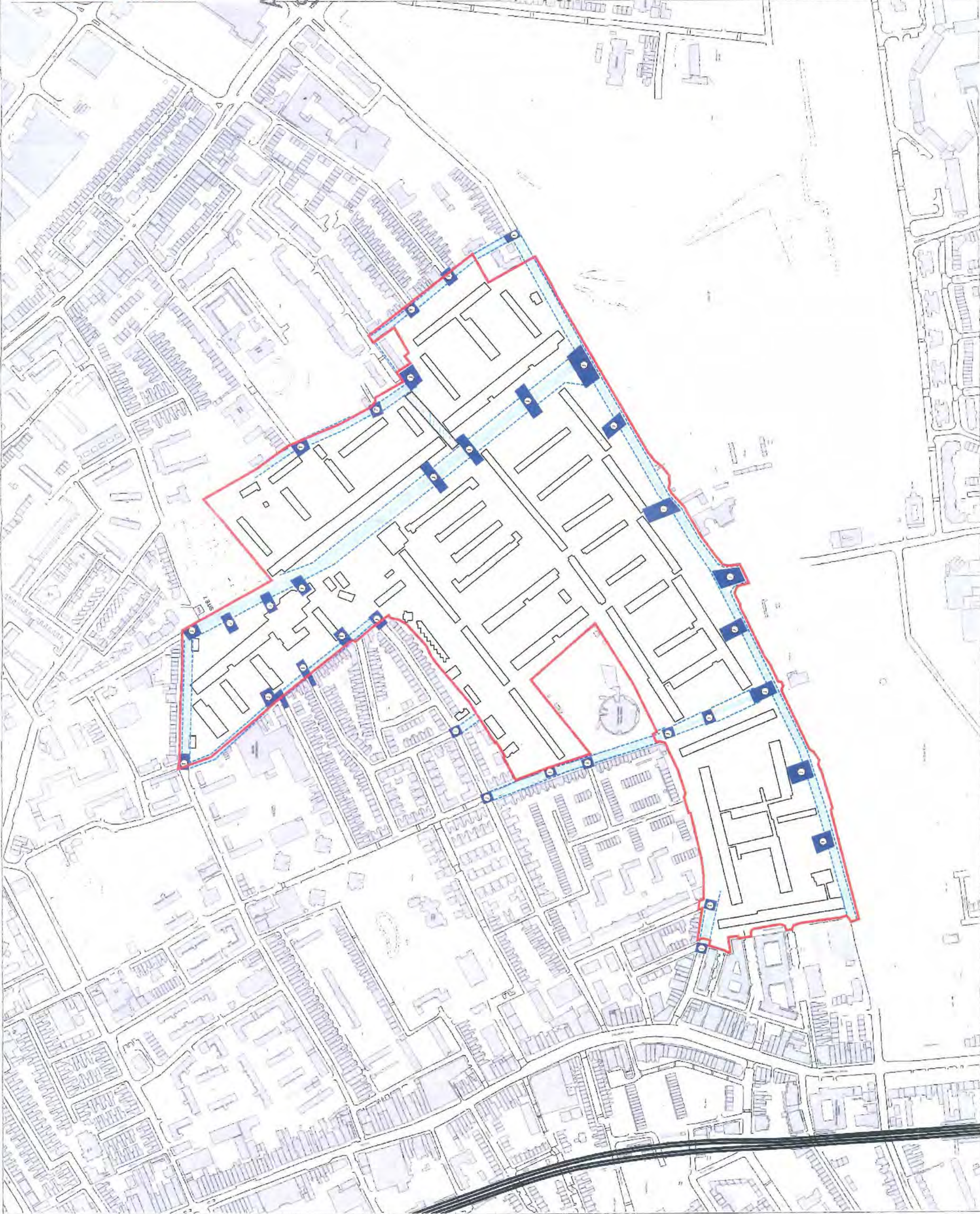
KEY

- Footpath
- Traffic Calming Measures (TCM)
- U-Junction
- Works to Existing Road
- Highway to be Signposted
- Indicative Extent of Proposed Zone

NOTES:

- All infrastructure vehicle locations are shown as indicative

**AUTHORISED
SIGNATORY**



A 22/02/2015 - Updated to reflect L11 Southward comments

PLANNING

**Notting Hill Housing
Aylesbury Outline Planning Appl.**

S278 Overall Site Plan

Development Stages / Existing Site

1:4000 @ A3 AJK

NHH-AES-HTA-U-MPL-S278_101

NHH_AES

14/02/2015

14/02/2015

14/02/2015

14/02/2015

2. Statutory Provisions

- 2.1 This Deed is made pursuant to section 106 of the 1990 Act. To the extent that they fall within the terms of section 106 of the 1990 Act, the obligations contained in this Deed are planning obligations for the purposes of section 106 of the 1990 Act and are enforceable by the Council and the restrictive covenants and undertakings herein on the part of the Developer are entered into with the intent that subject to Clause 8 the same shall be enforceable without limit of time not only against the Developer but also against its successors in title and assigns and any person corporate or otherwise claiming through or under the Developer an interest or estate created hereafter in the Site or any part or parts thereof as if that person had also been an original covenanting party in respect of such of the covenants and undertakings which relate to the interest or estate for the time being held by that person.
- 2.2 To the extent only that any of the obligations contained in this Deed are not planning obligations within the meaning of the 1990 Act, they are entered into pursuant to the powers contained in the Acts.

3. Legal Effect

- 3.1 In the event that any new planning permission(s) are granted by the Council in respect of the FDS Development and/or the Outline Development pursuant to Section 73 of the 1990 Act (as amended) and unless otherwise agreed between the parties:-

- 3.1.1 the obligations in this Deed shall relate to and bind any subsequent planning permission(s) in respect of the Site granted pursuant to Section 73 of the 1990 Act and the Site itself, and
- 3.1.2 the definitions of Applications, Development and Planning Permissions in this Deed shall be construed to include reference to any application under Section 73 of the 1990 Act, the planning permission(s) granted thereunder and the development permitted by such subsequent planning permission(s), and
- 3.1.3 this Deed shall be endorsed with the following words in respect of any future Section 73 application: -

"The obligations in this Agreement relate to and bind the Site in respect of which a new planning permission referenced [] has been granted pursuant to Section 73 of the Town and Country Planning Act 1990 (as amended)"

PROVIDED THAT nothing in this clause shall fetter the discretion of the Council in determining any application(s) under Section 73 of the 1990 Act or in determining the appropriate nature and / or quantum of planning obligations in so far as they are materially different to those contained in this Deed and required pursuant to a determination under Section 73 of the 1990 Act whether by way of a new deed or supplemental deed pursuant to section 106 of the 1990 Act.

4. Obligations of the Developer

- 4.1 The Developer covenants to observe and perform or cause to be observed and performed the obligations contained in Schedules 3-6 of this Deed at the times and in the manner provided therein.
- 4.2 The Developer shall pay the Site and Development Contributions as specified in Schedules 5 & 6 of this Deed by way of CHAPS transfer into National Westminster Bank plc Account Number 27540006 Sort Code 51-50-03 at London Bridge Branch PO Box 35, 10 Southwark Street, London SE1 1TT or such other account as the Council shall nominate.
- 4.3 The Developer covenants with the Council that if it acquires an After Acquired Interest it shall forthwith notify the Council and enter into and deliver to the Council an executed deed substantially

in the form of the Confirmatory Deed (with all relevant requisite details accurately entered) so as to bind and make such After Acquired Interest subject to all of the planning obligations and other covenants agreements and provisions contained in this Deed mutatis mutandis (in so far as they relate to such interests and/or parts of the Site or to the Site as a whole and remain to be observed performed and/or complied with).

4.4 The Developer covenants with the Council not to Implement the Development in respect of a Development Stage until a Confirmatory Deed has been completed in order to bind the After Acquired Interest or Interests in respect of that Development Stage (or the relevant part or parts thereof).

4.5 The Developer covenants with the Council not to Dispose of any part of the Site to any third party prior to:-

4.5.1 obtaining an After Acquired Interest in the relevant part of the Site;

4.5.2 entering into a Confirmatory Deed in respect of the relevant After Acquired Interest;

4.5.3 the registration of the After Acquired Interest and Confirmatory Deed at the Land Registry

5. Developer to Notify Council

5.1 The Developer covenants with the Council to notify the Council:

5.1.1 of its application to the Land Registry under clause 4.5.3 within 14 days of this Deed; and

5.1.2 immediately of the occurrence of the Implementation Date of each Development Stage by written notice; and

5.1.3 of its intention to pay the Contributions referred to in Schedules 5 and 6 by written notice specifying the intended date of payment, the amount and method of payment and the agreement and property to which the payment relates. Such notification to be given within the 5 Working Days immediately preceding the making of such payment; and

5.2 The Developer covenants to notify the Council in writing within 10 Working Days:

5.2.1 of the occurrence of the date of completion of the construction of the Affordable Housing Units; and

5.2.2 No less than 12 months prior to anticipated Practical Completion of the last Plot within a Development Stage.

5.2.3 Of final Practical Completion of each Development Stage

5.2.4 Of the occurrence of when Occupation of 50% of a Development Stage has been reached

5.2.5 of the occurrence of the Occupation or Disposal of 50% of the Remaining Units as soon as reasonably practicable by written notice.

6. Council's Covenants

6.1 The Council covenants with the Developer to observe and perform or cause to be observed and performed the obligations in Schedule 7 of this Deed.

7. Mortgagee

7.1 The Mortgagee consents to the Site being bound by the covenants, obligations and undertakings contained herein and that the said covenants obligations and undertakings shall take priority over its interest and should the Mortgagee become a successor in title or a mortgagee in possession of the Site or any part thereof before the planning obligations contained in this Deed have been

performed in full the Mortgagee agrees to be bound by those provisions of this Deed which are binding on the Developer.

8. Enforceability of Obligations

8.1 Subject to Schedule 10 the obligations contained in this Deed shall not be binding upon nor enforceable against:

- 8.1.1 (a) any mortgagees or charges of a Registered Provider (unless in possession); or
- (b) any receiver (including an administrative receiver) appointed by such mortgagee or chargee or any other person appointed under any security documentation; or
- (c) a person who is a successor in title to or derives title through or under (i) such mortgagee, chargees or receivers or appointed by such mortgagee or chargee or any other person appointed under any security documentation or (ii) the Registered Provider at the direction or requirement of any such mortgagees, chargees or receiver appointed by such mortgagees or chargees or any other person appointed under any security documentation;"

- 8.1.2 (a) any mortgagees or charges of a residential tenant or person to whom a Registered Provider grants a shared ownership lease or transfer;
- (b) any receiver (including an administrative receiver) appointed by such mortgagees or chargees;
- (c) a person who is a successor in title to or derives title through or under or at the direction or requirement of any such mortgagees, charges or receiver appointed by such mortgagees or chargees.

8.1.3 any statutory undertaker or other person who acquires any part of the Site or interest therein for the purposes of the supply of electricity gas water drainage telecommunication services or public transport services;

8.1.4 And in relation to the Affordable Housing provisions only:-

8.1.4.1 any tenant and successor who has exercised the right to acquire pursuant to the Housing Act 1996 or any statutory provision for the time being in force (or any equivalent contractual right) in respect of a particular Affordable Housing Unit;

8.1.4.2 any tenant and successor who has exercised any statutory right to buy (or any equivalent contractual or statutory right) in respect of a particular Affordable Housing Unit;

8.1.4.3 any tenant Staircasing to 100% pursuant to a shared ownership lease or any person deriving title through or under such tenant or any successor in title thereto and their respective mortgagees.

8.1.4.4 Any commercial tenant lessee or occupier.

8.2 No person shall be liable for any breach of the covenants restrictive or obligations contained in this Deed occurring after it has parted with the whole of its interest in the Site (but without prejudice to the liability of such person for any breach occurring prior to its parting with such interest).

9. Registration

9.1 Promptly after the execution of this Deed, the Developer shall make an application to the Land Registry for entries relating to this Deed to be made in the charges register(s) of the Title

Number(s) referred to in Schedule 2 so as to bind the Site as provided for in the before-mentioned statutory provisions.

- 9.2 If the Developer fails to make application as referred to in clause 9.1 above the Council shall (without prejudice to any other right) be entitled to register the Deed and recover the expenses incurred in doing so from the Developer and the Developer covenants with the Council to do or concur in doing all things necessary or advantageous to enable the said entries to be made.

- 9.3 The covenants on behalf of the parties hereto to be observed and performed under this Deed shall be treated as Local Land Charges and registered in the Register of Local Land Charges for the purposes of the Local Land Charges Act 1975.

10. Site Not To Be Encumbered

- 10.1 The Developer covenants with the Council that it will not encumber nor deal with the Site in any manner whereby any party hereto or successor in title may be prevented from carrying out their covenants and obligations contained herein.

11. Right of Access

- 11.1 Without prejudice to the Council's statutory rights of entry the Developer shall permit the Council and its authorised employees and agents upon reasonable written notice to enter the Site at all reasonable times for the purpose of verifying whether or not any obligation arising hereunder has been performed or observed.

12. Waiver

- 12.1 No waiver (whether express or implied) by the Council of any breach or default by the Developer in performing or observing any of the covenants undertakings obligations or restrictions contained in this Deed shall constitute a continuing waiver and no such waiver shall prevent the Council from enforcing any of the said covenants undertakings obligations or restrictions from acting upon any subsequent breach or default in respect thereof by the Developer.

13. Interest on Late Payment

- 13.1 Without prejudice to any other right remedy or power herein contained or otherwise available to the Council if any payment of any sum referred to herein shall have become due but shall remain unpaid for a period exceeding seven days the Developer shall pay on demand to the Council interest thereon at the interest rate of four per centum per annum above the ending rate of the National Westminster Bank plc from the date when the same became due until payment thereof.

14. Indexation

- 14.1 Any sums referred to in this Deed as payable or to be applied by any party other than the Council under this Deed shall be paid or applied TOGETHER WITH if such payment or application is being made after the date of this Deed a further sum ("A") being equal to the original sum ("B") multiplied by a figure being a fraction of which the Index figure last published by the Office for National Statistics at the date hereof is the denominator ("X") and the published relevant index figure for the calendar month in which the respective payment or application is due to be made ("Y") less the last published Index figure at the date hereof ("X") is the numerator so that

$$A = \frac{B \times (Y - X)}{X}$$

15. Enforcement Costs

- 15.1 Without prejudice to the terms of any other provision herein the Developer shall pay all costs charges and expenses (including without prejudice to the generality thereof legal costs and

Surveyor's fees) reasonably incurred by the Council for the purpose of or incidental to the enforcement of any right or power of the Council or any obligation of the Developer arising hereunder.

16. Administration Cost (FDS Development) & Administration Cost (Outline Development)

16.1 The Developer covenants with the Council:

16.1.1 To pay to the Council the Administration Cost (FDS Development) on or before completion of this Deed; and

16.1.2 Not to Implement or allow Implementation until the Developer has paid the Administration Cost (FDS Development) to the Council.

16.1.3 To pay to the Council the Administration Cost (Outline Development) on or before completion of this Deed

16.1.4 Not to Implement or allow Implementation until the Developer has paid the Administration Cost (Outline Development) to the Council.

17. Council's Legal Fees

17.1 The Developer shall pay on the date of this Deed to the Council, by way of a banker's draft or solicitor's client account cheque made payable to "the London Borough of Southwark", the Council's reasonable costs in the preparation and negotiation of this Deed.

18. VAT

18.1 All consideration given in accordance with the terms of this Deed shall be exclusive of any VAT properly payable in respect thereof.

18.2 The Developer acknowledges and agrees that if at any time VAT is required to be paid in respect of any Site and Development Contributions then to the extent that VAT had not been previously charged in respect of that contribution the Council shall have the right to issue a VAT invoice to the Developer and the VAT shall be paid accordingly.

19. Notices

19.1 Any notice or other communication to be given under or in connection with this Deed shall be in writing which for this purpose shall not include e-mail and should be addressed as provided in clause 19.3.

19.2 Any such notice or other communication, if so addressed, shall be deemed to have been received as follows:

19.2.1 if delivered by hand, upon delivery at the relevant address;

19.2.2 if sent by first class post, at 9.00 a.m. on the second Working Day after the date of posting; and

except that where any such notice or other communication is or would otherwise be deemed to be received after 5.30 p.m., such notice or other communication shall be deemed to be received at 9.00 a.m. on the next following Working Day.

19.3 Subject to clause 19.4, the address, facsimile number, relevant addressee and reference for each party are:

For the Council:

Address: Southwark Council, Development Management, Planning & Transport, Director of Planning's Department, PO Box 64529 London, SE1P 5LX;

Facsimile number: 02075255432;
Relevant addressee: The Director of Planning;
Reference: S106/ 63752 and 14-AP-3843 or 14-AP-3844

For the Developer:

Address: Notting Hill Housing Trust, Bruce Kenrick House, 2 Killick Street, London N1 9FL
Email: aylesbury@nhhg.org.uk
Relevant addressee: Director of Development
Reference: Aylesbury
Telephone: 020 8357 5000

19.4 A party may give notice of a change to its name, address, facsimile number or relevant addressee for the purposes of this clause provided that such notification shall only be effective on:

- 19.4.1 the date specified in the notification as the date on which the change is to take place; or
- 19.4.2 if no date is specified or the date specified is less than five clear Working Days after the date on which notice is received or deemed to be received, the fifth Working Day after notice of any such change is given.

20. Determination of Disputes

20.1 Subject to **clause 20.7**, if any dispute arises relating to or arising out of the terms of this Agreement, either party may give to the other written notice requiring the dispute to be determined under this **clause 20**. The notice is to propose an appropriate Specialist and specify the nature and substance of the dispute and the relief sought in relation to the dispute.

20.2 For the purposes of this **clause 20** a "Specialist" is a person qualified to act as an expert in relation to the dispute having not less than ten years' professional experience in relation to developments in the nature of the Development and property in the same locality as the Site.

20.3 Any dispute over the type of Specialist appropriate to resolve the dispute may be referred at the request of either party to the President or next most senior available officer of the Law Society who will have the power, with the right to take such further advice as he may require, to determine the appropriate type of Specialist and to arrange his nomination under **clause 20.4**.

20.4 Any dispute over the identity of the Specialist is to be referred at the request of either party to the President or other most senior available officer of the organisation generally recognised as being responsible for the relevant type of Specialist who will have the power, with the right to take such further advice as he may require, to determine and nominate the appropriate Specialist or to arrange his nomination. If no such organisation exists, or the parties cannot agree the identity of the organisation, then the Specialist is to be nominated by the President or next most senior available officer of the Law Society.

20.5 The Specialist is to act as an independent expert and;

- 20.5.1 each party may make written representations within ten working days of his appointment and will copy the written representations to the other party;
- 20.5.2 each party is to have a further ten working days to make written comments on the other's representations and will copy the written comments to the other party;

- 20.5.3 the Specialist is to be at liberty to call for such written evidence from the parties and to seek such legal or other expert assistance as he or she may reasonably require;
 - 20.5.4 the Specialist is not to take oral representations from the parties without giving both parties the opportunity to be present and to give evidence and to cross-examine each other;
 - 20.5.5 the Specialist is to have regard to all representations and evidence before him when making his decision, which is to be in writing, and is to give reasons for his decision; and
 - 20.5.6 the Specialist is to use all reasonable endeavours to publish his decision within 30 working days of his appointment.
- 20.6 Responsibility for the costs of referring a dispute to a Specialist under this clause 20, including costs connected with the appointment of the Specialist and the Specialist's own costs, but not the legal and other professional costs of any party in relation to a dispute, will be decided by the Specialist.
- 20.7 This **clause 20** does not apply to disputes in relation to matters of law or the construction or interpretation of this Agreement which will be subject to the jurisdiction of the courts.
- 21. Contracts (Rights of Third Parties) Act 1999**
- 21.1 A person who is not named in this Deed does not have any right to enforce any term of this Deed under the Contract (Rights of Third Parties) Act 1999.
- 22. Miscellaneous**
- 22.1 The construction validity and performance of this Deed shall be governed by English law.
- 22.2 Each clause, sub-clause or schedule shall be separate distinct and severable from each other to the extent only that if any clause, sub-clause or schedule becomes or is invalid because of a change of circumstances or any other unforeseen reasons or if any one or more of such clause, sub-clause or schedule shall be held by the Courts to be void for any reason whatsoever but would be valid if severed or any wording was deleted or any time period reduced or scope of activities or area covered diminished then any modifications necessary to ensure such clause sub-clause schedule or paragraph be valid shall apply without prejudice to any other clause, sub-clause or schedule contained herein.
- 22.3 In the event of the planning obligations contained in this Deed being modified a note or memorandum thereof shall be endorsed upon this Deed.
- 22.4 Nothing in this Deed shall prejudice or affect the rights powers duties and obligations of the Council under private or public statutes bye-laws orders and regulations and the same may be as fully effectively exercised as if it were not a party to this Deed.
- 22.5 If the Planning Permission shall expire before the Development has begun within the meaning of Sections 91, 92 or 93 of the 1990 Act or is revoked or is otherwise withdrawn without the consent of the Developer or its successors in title but without prejudice to the Council's ability to enforce in respect of any breach occurring prior to such revocation or withdrawal this Deed shall have no further effect thereupon.
- 22.6 Nothing in this Deed shall be construed as prohibiting or limiting any right to develop the Site or any part of it in accordance with a planning permission (other than the Planning Permission) granted by the Council or by the relevant Secretary of State on appeal or by reference to him after this date.

23. Community Infrastructure Levy

- 23.1 The Parties are satisfied that the planning obligations given by the Developer set out in Schedules 3, 5, 6 and 10 of this Deed accord with the three statutory tests set out in Regulations 122 (2)(a)-(c) of the Community Infrastructure Regulations 2010 (as amended).

SCHEDULE 1

Draft Planning Permission

PLANNING PERMISSION WITH LEGAL AGREEMENT

Applicant Notting Hill Housing Trust
Date of Issue of this decision

LBS Registered Number 14/AP/3843

Planning Permission was GRANTED for the following development:

Demolition of existing buildings and redevelopment to provide a mixed use development comprising a number of buildings ranging between 2 to 20 storeys in height (9.45m - 72.2m AOD), providing 830 residential dwellings (Class C3); flexible community use, early years facility (Class D1) or gym (Class D2); public and private open space; formation of new accesses and alterations to existing accesses; energy centre; gas pressure reduction station; associated car and cycle parking and associated works.

At: AYLESBURY ESTATE, LAND BOUNDED BY ALBANY ROAD, PORTLAND STREET, WESTMORELAND ROAD AND BRADENHAM CLOSE, LONDON SE17

In accordance with application received on 13/10/2014 Your Ref. No.:

and Applicant's Drawing Nos. Planning Documents

Design and Access Statement for the First Development Site V1 (and addendum V1), Landscape Strategy for the First Development Site V1 (and addendum V1), Arboricultural Impact Assessment September 2014, Tree Strategy V1 (and addendum V1), Environmental Statement Volumes 1-4 (and addendum February 2015), Townscape and Visual Impact Assessment Addendum, Affordable Housing Statement (February 2015), Planning Statement (February 2015), Energy Assessment and District Heating Study (February 2015), Statement of Community Involvement, Transport Assessment (and addendum January 2015), Site Wide Waste Management Strategy (and addendum February 2015), Flood Risk Assessment V1, Sustainability Statement V1.

Planning Drawings

Existing drawings

D01-001A, D01-002, D01-003A, D01-005

Site wide

HTA-L-D01-X-XX-2900A, D01-004A, D01-100A, D01-101A, D01-102A, D1-106A, D01-130A, D01-131B, D01-132A, D01-133B, D01-134A, D01-135B, D01-136A, D01-137A, D01-138A, D01-139A.

Block 1

1305-NHH-AES-S01-100A, 1305-NHH-AES-S01-102A, 1305-NHH-AES-S01-104A, 1305-NHH-AES-S01-106A, 1305-NHH-AES-S01-110A, 1305-NHH-AES-S01-120A, 1305-NHH-AES-S01-121A, 1305-NHH-AES-S01-122A, 1305-NHH-AES-S01-123A, 1305-NHH-AES-S01-124A, 1305-NHH-AES-S01-125A, 1305-NHH-AES-S01-126A, 1305-NHH-AES-S01-130A, 1305-NHH-AES-S01-131A, 1305-NHH-AES-S01-132A, 1305-NHH-AES-S01-300A.

Block 2

S02-101A, S02-102A, S02-103A, S02-130A, S02-131A, S02-132A, S02-140A, S02-141, S02-300A.

Block 3

S03-101A, S03-102A, S03-103A, S03-104A, S03-130A, S03-131A, S03-132A, S03-140A, S03-141A.

Block 4

NHH-AES-S04-100A, NHH-AES-S04-101A, NHH-AES-S04-102A, NHH-AES-S04-103A, NHH-AES-S04-104A, NHH-AES-S04-105A, NHH-AES-S04-106A, NHH-AES-S04-107A, NHH-AES-S04-108A, NHH-AES-S04-109A, NHH-AES-S04-110A, NHH-AES-S04-111A, NHH-AES-S04-112A, NHH-AES-S04-122A, NHH-AES-S04-130A, NHH-AES-S04-131A, NHH-AES-S04-132A, NHH-AES-S04-133A, NHH-AES-S04-134A, NHH-AES-S04-135A, NHH-AES-S04-136A, NHH-AES-S04-137A, NHH-AES-S04-138A, NHH-AES-S04-139A, NHH-AES-S04-140A, NHH-AES-S04-141A, NHH-AES-S04-150A, NHH-AES-S04-151A, NHH-AES-S04-152A, NHH-AES-S04-300A, NHH-AES-S04-301A, NHH-AES-S04-302A.

Block 5

S05-101A, S05-102A, S05-103B, S05-104B, S05-105B, S05-106B, S05-107B, S05-108B, S05-109B, S05-110B, S05-111A, S05-112A, S05-113A, S05-120A, S05-130A, S05-131A, S05-133B, S05-134A, S05-135B, S05-136A, S05-137A, S05-138B, S05-140A, S05-142A, S05-143A, S05-144A, S05-145A, S05-146A, S05-147A, S05-300A,

S05-301A, S05-302A.

Block 6

S06-101A, S06-101A, S06-102A, S06-103B, S06-104B, S06-105B, S06-106C, S06-107C, S06-108C, S06-109C, S06-110C, S06-111B, S06-112A, S06-130B, S06-131A, S06-132A, S06-133B, S06-134A, S06-135A, S06-136B, S06-137B, S06-138A, S06-140A, S06-141A, S06-142A, S06X-DR_300_U2A.

Sections

HTA-L-D01-X-XX-2202A, HTA-L-D01-X-XX-2203A, HTA-L-D01-X-XX-2204A, HTA-L-D01-X-XX-2205A, HTA-L-D01-X-XX-2206, HTA-L-D01-X-XX-2207A, HTA-L-D01-X-XX-2208, HTA-L-D01-X-XX-2902A, HTA-L-D01-X-XX-2903A, HTA-L-D01-X-XX-2904A, HTA-L-D01-X-XX-2905A, HTA-L-D01-X-XX-2906, HTA-L-D01-X-XX-2907A, HTA-L-D01-X-XX-2908, HTA-L-D01-X-XX-2909.

Highways

0304-ATR-003B, 0304-ATR-004A, 0304-GA-007D, 0304-RP-001C, 0304-RP-002C

Subject to the following forty-one conditions:

Time limit for implementing this permission and the approved plans

- 1 The development hereby permitted shall be begun before the end of three years from the date of this permission.

Reason

As required by Section 91 of the Town and Country Planning Act 1990 as amended.

- 2 The development hereby permitted shall not be carried out otherwise than in accordance with the following approved plans:

Site wide

HTA-L-D01-X-XX-2900A, D01-004A, D01-100A, D01-101A, D01-102A, D1-106A, D01-130A, D01-131B, D01-132A, D01-133B, D01-134A, D01-135B, D01-136A, D01-137A, D01-138A, D01-139A.

Block 1

1305-NHH-AES-S01-100A, 1305-NHH-AES-S01-102A, 1305-NHH-AES-S01-104A, 1305-NHH-AES-S01-106A, 1305-NHH-AES-S01-110A, 1305-NHH-AES-S01-120A, 1305-NHH-AES-S01-121A, 1305-NHH-AES-S01-122A, 1305-NHH-AES-S01-123A, 1305-NHH-AES-S01-124A, 1305-NHH-AES-S01-125A, 1305-NHH-AES-S01-126A, 1305-NHH-AES-S01-130A, 1305-NHH-AES-S01-131A, 1305-NHH-AES-S01-132A, 1305-NHH-AES-S01-300A.

Block 2

S02-101A, S02-102A, S02-103A, S02-130A, S02-131A, S02-132A, S02-140A, S02-141, S02-300A.

Block 3

S03-101A, S03-102A, S03-103A, S03-104A, S03-130A, S03-131A, S03-132A, S03-140A, S03-141A.

Block 4

NHH-AES-S04-100A, NHH-AES-S04-101A, NHH-AES-S04-102A, NHH-AES-S04-103A, NHH-AES-S04-104A, NHH-AES-S04-105A, NHH-AES-S04-106A, NHH-AES-S04-107A, NHH-AES-S04-108A, NHH-AES-S04-109A, NHH-AES-S04-110A, NHH-AES-S04-111A, NHH-AES-S04-112A, NHH-AES-S04-122A, NHH-AES-S04-130A, NHH-AES-S04-131A, NHH-AES-S04-132A, NHH-AES-S04-133A, NHH-AES-S04-134A, NHH-AES-S04-135A, NHH-AES-S04-136A, NHH-AES-S04-137A, NHH-AES-S04-138A, NHH-AES-S04-139A, NHH-AES-S04-140A, NHH-AES-S04-141A, NHH-AES-S04-150A, NHH-AES-S04-151A, NHH-AES-S04-152A, NHH-AES-S04-300A, NHH-AES-S04-301A, NHH-AES-S04-302A.

Block 5

S05-101A, S05-102A, S05-103B, S05-104B, S05-105B, S05-106B, S05-107B, S05-108B, S05-109B, S05-110B, S05-111A, S05-112A, S05-113A, S05-120A, S05-130A, S05-131A, S05-133B, S05-134A, S05-135B, S05-136A, S05-137A, S05-138B, S05-140A, S05-142A, S05-143A, S05-144A, S05-145A, S05-146A, S05-147A, S05-300A, S05-301A, S05-302A.

Block 6

S06-101A, S06-101A, S06-102A, S06-103B, S06-104B, S06-105B, S06-106C, S06-107C, S06-108C, S06-109C, S06-110C, S06-111B, S06-112A, S06-130B, S06-131A, S06-132A, S06-133B, S06-134A, S06-135A, S06-136B, S06-137B, S06-138A, S06-140A, S06-141A, S06-142A, S06X-DR_300_U2A.

Sections

HTA-L-D01-X-XX-2202A, HTA-L-D01-X-XX-2203A, HTA-L-D01-X-XX-2204A, HTA-L-D01-X-XX-2205A, HTA-L-D01-X-XX-2206, HTA-L-D01-X-XX-2207A, HTA-L-D01-X-XX-2208, HTA-L-D01-X-XX-2902A, HTA-L-D01-X-XX-2903A, HTA-L-D01-X-XX-2904A, HTA-L-D01-X-XX-2905A, HTA-L-D01-X-XX-2906, HTA-L-D01-X-XX-2907A, HTA-L-D01-X-XX-2908, HTA-L-D01-X-XX-2909.

Highways

0304-ATR-003B, 0304-ATR-004A, 0304-GA-007D, 0304-RP-001C, 0304-RP-002C

Reason:

For the avoidance of doubt and in the interests of proper planning.

Pre-commencement condition(s) - the details required to be submitted for approval by the condition(s) listed below must be submitted to and approved by the council before any work in connection with implementing this permission is commenced.

- 3 Tree Protection
Prior to any works, including demolition, commencing on;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

An Arboricultural Method Statement shall be submitted to and approved in writing by the Local Planning Authority.

- i) A pre-commencement meeting shall be arranged, the details of which shall be notified to the Local Planning Authority for agreement in writing prior to the meeting and prior to works commencing on site, including any demolition, changes to ground levels, pruning or tree removal.
- ii) The Arboricultural Method Statement showing the means by which any retained trees on or directly adjacent to the site are to be protected from damage by demolition works, excavation, vehicles, stored or stacked building supplies, waste or other materials, and building plant, scaffolding or other equipment, shall then be submitted to and approved in writing by the Local Planning Authority. The method statements shall include details of facilitative pruning specifications and a supervision schedule overseen by an accredited arboricultural consultant.
- iii) Cross sections shall be provided to show surface and other changes to levels, special engineering or construction details and any proposed activity within root protection areas required in order to facilitate demolition, construction and excavation.

The existing trees on or adjoining the site which are to be retained shall be protected and both the site and trees managed in accordance with the recommendations contained in the method statement. Following the pre-commencement meeting all tree protection measures shall be installed, carried out and retained throughout the period of the works, unless otherwise agreed in writing by the Local Planning Authority. In any case, all works must adhere to BS5837: (2012) Trees in relation to demolition, design and construction and BS3998: (2010) Tree work - recommendations. If within the expiration of 5 years from the date of the occupation of the building for its permitted use any retained tree is removed, uprooted is destroyed or dies, another tree shall be planted at the same place and that tree shall be of such size and species, and shall be planted at such time, as may be specified in writing by the Local Planning Authority.

Reason

To avoid damage to the existing trees which represent an important visual amenity in the area, in accordance with The National Planning Policy Framework 2012 Parts 7, 8, 11 & 12 and policies of The Core Strategy 2011: SP11 Open spaces and wildlife; SP12 Design and conservation; SP13 High environmental standards, and Saved Policies of The Southwark Plan 2007: Policy 3.2 Protection of amenity; Policy 3.12 Quality in Design; Policy 3.13 Urban Design and Policy 3.28 Biodiversity.

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- 4 Site Contamination
Prior to the commencement of any development (excluding demolition) on;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

Part One - A site investigation and risk assessment shall be completed in accordance with a scheme to assess the nature and extent of any contamination on the site, whether or not it originates on the site.

i) The Phase 1 (desk study, site categorisation; sampling strategy etc.) shall be submitted to the Local Planning Authority for approval before the commencement of any intrusive investigations.

ii) Any subsequent Phase 2 (site investigation and risk assessment) shall be conducted in accordance with any approved scheme and submitted to the Local Planning Authority for approval prior to the commencement of any remediation that might be required.

Part Two - In the event that contamination is present, a detailed remediation strategy to bring the site to a condition suitable for the intended use by removing unacceptable risks to human health, buildings and other property and the natural and historical environment shall be prepared and submitted to the Local Planning Authority for approval in writing. The scheme shall ensure that the site will not qualify as contaminated land under Part 2A of the Environmental Protection Act 1990 in relation to the intended use of the land after remediation. The approved remediation scheme (if one is required) shall be carried out in accordance with its terms prior to the commencement of development, other than works required to carry out remediation, unless otherwise agreed in writing by the Local Planning Authority. The Local Planning Authority shall be given two weeks written notification of commencement of the remediation scheme works.

Part Three - Following the completion of the works and measures identified in the approved remediation strategy, a verification report providing evidence that all works required by the remediation strategy have been completed shall be submitted to and approved in writing by the Local Planning Authority.

Part Four - In the event that potential contamination is found at any time when carrying out the approved development that was not previously identified, it shall be reported in writing immediately to the Local Planning Authority, and a scheme of investigation and risk assessment, a remediation strategy and verification report (if required) shall be submitted to the Local Planning Authority for approval in writing, in accordance with Part One - Part Three above.

Reason

To ensure that risks from land contamination to the future users of the land and neighbouring land are minimised, together with those to controlled waters, property and ecological systems, and to ensure that the development can be carried out safely without unacceptable risks to workers, neighbours and other off-site receptors in accordance with saved policy 3.2 'Protection of amenity' of the Southwark Plan (2007), strategic policy 13 'High environmental standards' of the Core Strategy (2011) and the National Planning Policy Framework 2012.

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- 5 Demolition Environmental Management Plan (DEMP)
No demolition works shall take place for

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

Until a DEMP for each block has been submitted to and approved in writing by the Local Planning Authority. The DEMP shall oblige the applicant, or developer and their contractor/s to commit to current best practice with regard to site management and use all best endeavours to minimise disturbances including, but not limited to, noise, vibration, dust, smoke and plant emissions emanating from the site during any demolition works. The DEMP will include the following:

- A detailed specification of demolition works including consideration of environmental impacts (noise, dust, emissions to air, lighting, waste) and the proposed remedial measures;
- Engineering measures to eliminate or mitigate specific environmental impacts
- Arrangements for direct and responsive contact for the public with the contractor/site management during demolition and arrangements for regular public access information meetings to discuss the progress of and issues with the demolition;
- A commitment to adopt and implement the ICE Demolition Protocol, Southwark's Considerate Contractor Scheme and GLA Best Practice Guidance;
- To follow all current best practice with regard to the management of outputs regarding noise and emission to air;
- Safe routing, holding and access for site traffic;
- Waste storage, separation and disposal;
- A demolition logistics plan (prepared to TfL CLP Standards and subject to approval by TfL);
- Details of cycle awareness training for all drivers and installation of skirts on all lorries.

All demolition and construction work shall then be undertaken in strict accordance with the approved DEMP, unless otherwise agreed in advance, in writing by the Local Planning Authority.

Reason

To ensure that occupiers of neighbouring premises and the wider environment do not suffer a loss of amenity by reason of pollution and nuisance, in accordance with strategic policy 13 'High environmental standards' of the Core Strategy (2011) saved policy 3.2 'Protection of amenity' of the Southwark Plan (2007), and the National Planning Policy Framework 2012.

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- 6 Ecological management plan
Prior to the commencement of development (excluding demolition) on;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

A landscape management plan, including long-term design objectives, management responsibilities and maintenance schedules for all landscaped areas (except privately owned domestic gardens), shall be submitted to and approved in writing by the local planning authority. The landscape management plan shall be carried out as approved and any subsequent variations shall be agreed in writing by the local planning authority. The scheme shall include the following elements: Management of Biodiverse Green roofs, Nest boxes, Rain gardens, Native planting and hedges.

Reasons: This condition is necessary to ensure the protection of wildlife and supporting habitat and secure opportunities for the enhancement of the nature conservation value of the site. This is an mandatory criteria of BREEAM (LE5) to monitor long term impact on biodiversity. a requirement is to produce a Landscape and Habitat Management Plan.

- 7 Environment Agency - Groundwater contamination
Prior to the commencement of development (excluding demolition) on;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

The following components of a scheme to deal with the risks associated with contamination of the site shall each be submitted to, and approved in writing by, the Local Planning Authority in consultation with the Environment Agency:

- i) A site investigation scheme, based on submitted geo-environmental and geotechnical preliminary risk assessment by WSP UK Ltd (dated 22 September 2014 with reference 50600304), to provide information for a detailed assessment of the risk to all receptors which may be affected, including those off site;
- ii) The results of the site investigation and detailed risk assessment referred to in (i) and, based on these, an options appraisal and remediation strategy giving full details of the remediation measures required and how they are to be undertaken;
- iii) A verification plan providing details of the data which will be collected in order to demonstrate that the works set out in the remediation strategy in (ii) are complete and identifying any requirements for longer-term monitoring of pollutant linkages, maintenance and arrangements for contingency action. Any changes to these components require the express consent of the Local Planning Authority. The scheme shall be implemented as approved.

Reason

For the protection of controlled waters. The site is located over a Secondary Aquifer and it is possible that the site may be affected by historic contamination.

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If, during development, contamination not previously identified is found to be present at the site then no further development (unless otherwise agreed in writing with the Local Planning Authority) shall be carried out on that development block until the developer has submitted, and obtained written approval from the Local Planning Authority for, a remediation strategy detailing how this unsuspected contamination shall be dealt with. The remediation strategy shall be implemented as approved, verified and reported to the satisfaction of the Local Planning Authority.

Reason

There is always the potential for unexpected contamination to be identified during groundworks. The Environment Agency should be consulted should any contamination be identified that could present an unacceptable risk to controlled waters.

9 Thames Water - Drainage

Prior to commencement of any construction works, excluding demolition, on;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

A drainage strategy for that block, detailing any on and/or off site drainage works should be submitted to and approved in writing by the local planning authority in consultation with the sewerage undertaker. No discharge of foul or surface water from the site shall be accepted into the public system until the drainage works referred to in the strategy have been completed.

Reason

The development may lead to sewage flooding; to ensure that sufficient capacity is made available to cope with the new development; and in order to avoid adverse environmental impact upon the community.

10 Thames Water - Impact piling

For each of;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

No impact piling shall take place until a piling method statement (detailing the depth and type of piling to be undertaken and the methodology by which such piling will be carried out, including measures to prevent and minimise the potential for damage to subsurface sewerage and water infrastructure, and the programme for the works) has been submitted to and approved in writing by the local planning authority in consultation with Thames Water. Any piling must be undertaken in accordance with the terms of the approved piling method statement.

Reason

The proposed works will be in close proximity to underground sewerage and water utility infrastructure. Piling has the potential to impact on local underground sewerage utility infrastructure. The applicant is advised to contact Thames Water Developer Services on 0800 009 3921 to discuss the details of the piling method statement.

- 11 Thames Water - Water Supply
Development (excluding demolition) should not be commenced until Impact studies of the existing water supply infrastructure have been submitted to, and approved in writing by, the local planning authority (in consultation with Thames Water). The studies should determine the magnitude of any new additional capacity required in the system and a suitable connection point.

Reason: To ensure that the water supply infrastructure has sufficient capacity to cope with the/this additional demand.

- 12 Highways Infrastructure Plan
Notwithstanding drawing number 0304-GA-007D, an updated Highways Infrastructure Plan shall be submitted to and agreed in writing by the Local Planning Authority prior to the commencement of development (excluding demolition) in consultation with the Highways Authority in order to finalise details of street design and treatment, lighting, planting access and visibility. The development shall then be implemented in accordance with any consent given.

Reason

In the interest of amenity and to secure a high standard of street design.

Commencement of works above grade - the details required to be submitted for approval by the condition(s) listed below must be submitted to and approved by the council before any work above grade is commenced. The term 'above grade' here means any works above ground level.

- 13 Landscaping
Before any above grade work hereby authorised begins on;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

Detailed drawings of a hard and soft landscaping scheme showing the treatment of all parts of the relevant block not covered by buildings (including cross sections, podium gardens, roof gardens, surfacing materials of any parking, access, or pathways layouts, materials and edge details and material samples of hard landscaping), shall be submitted to and approved in writing by the Local Planning Authority. The submission should include details of native planting with a minimum of 30% of native plants of local provenance. The landscaping shall not be carried out otherwise than in accordance with any such approval given and shall be retained for the duration of the use. The planting, seeding and/or turfing shall be carried out in the first planting season following completion of building works and any trees or shrubs that is found to be dead, dying, severely damaged or diseased within five years of the completion of the building works OR five years of the carrying out of the landscaping scheme (whichever is later), shall be replaced in the next planting season by specimens of the same size and species in the first suitable planting season. Planting shall comply to BS: 4428 Code of practice for general landscaping operations, BS: 5837 (2012) Trees in relation to demolition, design and construction and BS 7370-4:1993 Grounds maintenance Recommendations for maintenance of soft landscape (other than amenity turf).

Reason

So that the Council may be satisfied with the details of the landscaping scheme in accordance with The National Planning Policy Framework 2012 Parts 7, 8, 11 & 12 and policies of The Core Strategy 2011: SP11 Open spaces and wildlife; SP12 Design and conservation; SP13 High environmental standards, and Saved Policies of The Southwark Plan 2007: Policy 3.2 Protection of amenity; Policy 3.12 Quality in Design; Policy 3.13 Urban Design and Policy 3.28 Biodiversity.

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- 14 Green/Brown Roofs
Before any above grade work hereby authorised begins on;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

Details (including a specification and maintenance plan) of the green/brown roof/ living walls/ vertical gardens, terraces and planters to be used in the carrying out of this permission shall be submitted to and approved in writing by the Local Planning Authority. The development shall not be carried out otherwise than in accordance with any such approval given, and the green/brown roof/ living walls/ vertical gardens; terraces and planters are to be retained for the duration of the use. Where trees and large shrubs are proposed to be provided within planters, details of irrigation shall be provided such that water is available for the maintenance by mains, grey water or other sustainable drainage specification such as attenuation tanks and automated irrigation systems.

Reason

To ensure the proposed development will preserve and enhance the visual amenities of the locality and is designed for the maximum benefit of local biodiversity, in addition to the attenuation of surface water runoff, it in accordance with The National Planning Policy Framework 2012, Strategic Policy 11 Open spaces and wildlife, Strategic Policy 12 Design and Conservation and Strategic Policy 13 High environmental standards of The Core Strategy 2011 and Saved Policies 3.2 Protection of amenity; 3.12 Quality in Design, 3.13 Urban design and 3.28 Biodiversity of the Southwark Plan 2007.

- 15 BREEAM
Before any fit out works to the community space in Block 1 hereby authorised begins, an independently verified BREEAM report (detailing performance in each category, overall score, BREEAM rating and a BREEAM certificate of building performance) to achieve a minimum 'Very Good' shall be submitted to and approved in writing by the Local Planning Authority and the development shall not be carried out otherwise than in accordance with any such approval given;
Before the community space in Block 1 is brought into use, a certified Post Construction Review (or other verification process agreed with the local planning authority) shall be submitted to and approved in writing by the Local Planning Authority, confirming that the agreed standards at (a) have been met.

Reason

To ensure the proposal complies with The National Planning Policy Framework 2012, Strategic Policy 13 - High Environmental Standards of The Core Strategy 2011 and Saved Policies 3.3 Sustainability and 3.4 Energy Efficiency of the Southwark Plan 2007.

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16 Car Club Bays

Before any above grade work is carried out, including landscaping works, details of the positioning of the three car club bays shall be submitted to and approved in writing by the Local Planning Authority and the development shall not be carried out otherwise than in accordance with any such approval given. The car club bays shall remain for as long as the development is occupied.

Reason

To ensure the safety of motorists, cyclists and pedestrians in accordance with The National Planning Policy Framework 2012, Strategic Policy 2 - Sustainable Transport of The Core Strategy 2011 and Saved Policy 5.2 Transport impacts of the Southwark Plan 2007.

17 Designing Out Crime

Before any above grade work hereby authorised begins on

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

Details of security measures for that block shall be submitted and approved in writing by the Local Planning Authority and any such security measures shall be implemented prior to occupation in accordance with the approved details which shall achieve the 'Secured by Design' accreditation award from the Metropolitan Police.

Reason

In pursuance of the Local Planning Authority's duty under section 17 of the Crime and Disorder Act 1998 to consider crime and disorder implications in exercising its planning functions and to improve community safety and crime prevention in accordance with The National Planning Policy Framework 2012, Strategic Policy 12 - Design and conservation of The Core Strategy 2011 and Saved Policy 3.14 Designing out crime of the Southwark plan 2007.

18 CHP Plant Pre approval

Before any above grade works take place on any part of the site, the developer will provide a report advising of the full particulars and details of the CHP plant including final location, layout, operation, management plan, management responsibilities, maintenance schedule, fuel supply, height of flue, emissions impact on local air quality and proposed emission mitigation equipment. These details shall be submitted and approved in writing by the Local Planning Authority. The CHP plant shall not be constructed or operated other than in accordance with the LPA approval given whilst it is in commission.

Reason

In order that the Local Planning Authority may be satisfied that the location, layout, operation, management plan, management responsibilities, maintenance schedule, fuel supply, height of flue, emissions impact on local air quality and proposed emission mitigation equipment are cohesive, adequate and effective, to ensure the proposal minimises its impact on air quality and amenity in accordance with The National Planning Policy Framework 2012, Strategic Policy 13 High Environmental Standards of the Core Strategy 2011 and Saved Policies 3.3 Sustainability Assessment, 3.4 Energy Efficiency and 3.6 Air Quality of the Southwark Plan 2007.

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- 19 Construction Environmental Management Plan (CEMP)
No above grade works shall take place on;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

Until a CEMP for that block has been submitted to and approved in writing by the Local Planning Authority. The CEMP shall oblige the applicant, or developer and their contractor/s to commit to current best practice with regard to site management and use all best endeavours to minimise disturbances including, but not limited to, noise, vibration, dust, smoke and plant emissions emanating from the site during construction. The CEMP will include the following:

- A detailed specification of construction works including consideration of environmental impacts (noise, dust, emissions to air, lighting, waste) and the proposed remedial measures;
- The specification shall include details of foundation piling
- Engineering measures to eliminate or mitigate specific environmental impacts
- Arrangements for direct and responsive contact for the public with the contractor/site management during demolition and/or construction and arrangements for regular public access information meetings to discuss the progress of and issues with the development;
- A commitment to adopt and implement the ICE Demolition Protocol, Southwark's Considerate Contractor Scheme and GLA Best Practice Guidance;
- To follow all current best construction practice with regard to the management of outputs regarding noise and emission to air;
- Safe routing, holding and access for site traffic;
- Waste storage, separation and disposal;
- A Construction and Logistics Plan in line with TfL guidance (all construction access routes and access details also need to be approved by TfL);
- Details of cycle awareness training for all drivers and installation of skirts on all lorries.

All construction work shall then be undertaken in strict accordance with the approved CEMP, unless otherwise agreed in advance, in writing by the Local Planning Authority.

Reason

To ensure that occupiers of neighbouring premises and the wider environment do not suffer a loss of amenity by reason of pollution and nuisance, in accordance with strategic policy 13 'High environmental standards' of the Core Strategy (2011) saved policy 3.2 'Protection of amenity' of the Southwark Plan (2007), and the National Planning Policy Framework 2012.

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- 20 Air Quality Assessment
Before any above grade work hereby authorised begins on;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

A site report detailing the proposed methods relevant to that block to minimise future occupiers exposure to air pollution shall be submitted to and approved in writing by the local planning authority and the development shall not be carried out otherwise than in accordance with any such approval given and the approved scheme shall be implemented prior to occupation of the development and shall be permanently maintained thereafter.

Reason

To ensure that end users of the development do not suffer a loss of amenity by reason of air pollution in accordance with saved policy 3.2 'Protection of amenity' of the Southwark Plan (2007), strategic policy 13' High environmental standards' of the Core Strategy (2011) and the NPPF 2012

- 21 Cycle Storage
Before any above grade work hereby authorised begins on;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

Details (1:50 scale drawings) of the facilities to be provided in that block for the secure and covered storage of cycles shall be submitted to and approved in writing by the Local Planning Authority. The details submitted shall also show layout, location and type of any on-street cycle parking. Thereafter the cycle parking facilities provided shall be retained and the space used for no other purpose and the development shall not be carried out otherwise in accordance with any such approval given.

Reason

In order to ensure that satisfactory safe and secure cycle parking facilities are provided and retained in order to encourage the use of cycling as an alternative means of transport to the development and to reduce reliance on the use of the private car in accordance with The National Planning Policy Framework 2012, Strategic Policy 2 - Sustainable Transport of The Core Strategy and Saved Policy 5.3 Walking and Cycling of the Southwark Plan 2007.

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For each of;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

Details of the biodiversity (green/brown) roofs for that block shall be submitted to and approved in writing by the Local Planning Authority prior to any superstructure works commencing on site. The biodiversity (green/brown) roofs shall be:

- i) biodiversity based with extensive substrate base (depth 80-150mm);
- ii) laid out in accordance with the Roof plans for blocks 1,4,5, and 6 hereby approved; and
- iii) planted/seeded with an agreed mix of species within the first planting season following the practical completion of the building works (focused on wildflower planting, and no more than a maximum of 25% sedum coverage).

The biodiversity (green/brown) roof shall not be used as an amenity or sitting out space of any kind whatsoever and shall only be used other than a biodiversity roof in the case of essential maintenance or repair, or escape in case of emergency. The biodiversity roof(s) shall be carried out strictly in accordance with the details so approved and shall be maintained as such thereafter. Discharge of this condition will be granted on receiving the details of the green/brown roofs and Southwark Council agreeing the submitted plans which will then be implemented as approved. A post completion assessment will be required to confirm the roof has been constructed to the agreed specification.

Reason: To ensure the development provides the maximum possible provision towards creation of habitats and valuable areas for biodiversity in accordance with policies: 2.18, 5.3, 5.10, and 511 of the London Plan 2014, saved policy 3.28 of the Southwark Plan 2007 and Strategic Policy 11 of the Southwark Core Strategy 2011.

23 Bat Tubes and boxes
Prior to any above grade works on;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

Details of bat tubes/ bricks for that block shall be submitted to and approved in writing by the Local Planning Authority. No less than 10 Tubes/ bricks, (with a minimum of 3 Tubes) for each block, shall be provided and the details shall include the exact location, specification and design of the habitats. The boxes / bricks shall be installed with the development prior to the first occupation of the building to which they form part or the first use of the space in which they are contained. The nesting Tubes / bricks shall be installed strictly in accordance with the details so approved, shall be maintained as such thereafter. Discharge of this condition will be granted on receiving the details of the nest/roost features and mapped locations and Southwark Council agreeing the submitted plans which will then be implemented as approved. A post completion assessment will be required to confirm the nest/roost features have been installed to the agreed specification.

Reason: To ensure the development provides the maximum possible provision towards creation of habitats and valuable areas for biodiversity in accordance with policies: 5.10 and 7.19 of the London Plan 2011, Policy 3.28 of the Southwark Plan 2007 and Strategic Policy 11 of the Southwark Core Strategy 2011.

24 Swift boxes
Prior to any above grade works on:

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

Details of Swift nesting boxes / bricks for that block shall be submitted to and approved in writing by the Local Planning Authority. No less than 8 nesting boxes / bricks shall be provided for blocks 4, 5, and 6 and the details shall include the exact location, specification and design of the habitats. The boxes / bricks shall be installed with the development prior to the first occupation of the building to which they form part or the first use of the space in which they are contained. The Swift nesting boxes / bricks shall be installed strictly in accordance with the details so approved, shall be maintained as such thereafter. Discharge of this condition will be granted on receiving the details of the nest/roost features and mapped locations and Southwark Council agreeing the submitted plans which will then be implemented as approved. A post completion assessment will be required to confirm the nest/roost features have been installed to the agreed specification.

Reason: To ensure the development provides the maximum possible provision towards creation of habitats and valuable areas for biodiversity in accordance with policies: 5.10 and 7.19 of the London Plan 2011, Policy 3.28 of the Southwark Plan and Strategic Policy 11 of the Southwark Core strategy.

25 External Material Samples
For each of :

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

Material sample panels of all external facing materials, including glazing, brickwork (bond and pointing) and decorative metal screening for the relevant block shall be presented on site and approved in writing by the Local Planning Authority before any work above grade in connection with each block is carried out. The development shall not be carried out otherwise than in accordance with any such approval given. These samples must demonstrate how the proposal demonstrates exemplary quality in terms of materials to be used.

Reason:

In order that the Local Planning Authority may be satisfied as to the design and details in accordance with saved policies: Part 7 of the NPPF; Policy SP12 of the Core Strategy 2011) and saved Policies 3.12 Quality in Design; 3.13 Urban Design; of The Southwark Plan (2007).

26 Design - Mock ups
Prior to any above grade works taking place on;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

A mock up of all external finishes including cladding, brickwork and masonry which includes a corner junctions with door and window reveals, cills, lintels and all ground level door types for the relevant block shall be constructed for inspection on site and approved in writing by the Local Planning Authority; the development shall not be carried out otherwise than in accordance with any such approval given.

Reason:

In order that the Local Planning Authority may be satisfied as to the design and details in accordance with saved policies: Part 7 of the NPPF; Policy SP12 of the Core Strategy 2011) and saved Policies 3.12 Quality in Design; 3.13 Urban Design; of The Southwark Plan (2007).

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SOUTHWARK COUNCIL

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27 Design - detailed drawings
Prior to any above grade works on;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

Section detail-drawings at a scale of 1:20 through:

- principal features on the facades;
- parapets (which shall be in brick or masonry);
- roof edges;
- junctions with the existing building; and
- heads, sills and jambs of all openings.

Shall be submitted to and approved in writing by the Local Planning Authority; the development shall not be carried out otherwise than in accordance with any such approval given.

Reason:

In order that the Local Planning Authority may be satisfied as to the design and details in accordance with saved policies: Part 7 of the NPPF; Policy SP12 of the Core Strategy 2011) and saved Policies 3.12 Quality in Design; 3.13 Urban Design; of The Southwark Plan (2007).

Pre-occupation condition(s) - the details required to be submitted for approval by the condition(s) listed below must be submitted to and approved by the council before the building(s) hereby permitted are occupied or the use hereby permitted is commenced.

28 Plant Noise
Prior to the occupation of;

- (a) Block 1
- (b) Block 2
- (c) Block 3
- (d) Block 4
- (e) Block 5
- (f) Block 6

The rated noise level from any plant including the proposed CHP scheme and energy centre, together with any associated ducting or fittings shall be 10 dB(A) or more below the lowest relevant measured LA90 (15min) at the nearest noise sensitive premises. A validation test shall be carried out prior to any plant being commissioned and the results shall be submitted to the Local Planning Authority for approval in writing prior to the occupation of any units within the relevant block.

Reason

To ensure that occupiers of neighbouring premises do not suffer a loss of amenity by reason of noise nuisance or the local environment from noise creep due to plant and machinery in accordance with the National Planning Policy Framework 2012, Strategic Policy 13 High Environmental Standards of the Core Strategy 2011 and Saved Policy 3.2 Protection of Amenity of the Southwark Plan (2007).

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- 29 Electric Vehicle Charging Points
Before the first occupation of;

- a) Block 4
- b) Block 5

Details of the installation (including location and type) of electric vehicle charger points for that block shall be submitted to and approved in writing by the Local Planning Authority and the electric vehicle charger points shall be installed prior to occupation of the development and the development shall not be carried out otherwise in accordance with any such approval given.

Reason

To encourage more sustainable travel in accordance with The National Planning Policy Framework 2012, Strategic Policy 2 Sustainable Transport of The Core Strategy 2011 and Saved Policies 3.1 Environmental Effects and 5.2 Transport Impacts of the Southwark Plan 2007.

- 30 Service Management Plan
Prior to occupation of;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

A Service Management Plan for that block detailing how all elements of the site are to be serviced, including bin collection and deliveries, shall be submitted to and approved in writing by the Local Planning Authority. The development shall be carried out in accordance with the approval given and shall remain for as long as the development is occupied.

Reason

To ensure compliance with The National Planning Policy Framework 2012, Strategic Policy 2 Sustainable Transport of The Core Strategy 2011 and Saved Policy 5.2 Transport Impacts of the Southwark Plan 2007.

- 31 Ecological monitoring
Prior to the occupation of;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

A scheme for monitoring the effectiveness of the biodiversity mitigation and enhancement measures for that block, shall be submitted to and approved by the Local Planning Authority. This shall include:

- Use of bird or bat nesting and roosting features, Success of the biodiversity roofs, hedges, parks and rain gardens to support wildlife.
- The monitoring shall be carried out and reported to the Local Planning Authority in accordance with the agreed scheme for a period of 10 years.

Reason: to measure the effectiveness of biodiversity mitigation and/or enhancement measures, to see whether

the measures achieve the expected biodiversity benefits. This will help refine the design of mitigation schemes to ensure effective measures are put into place in future developments.

32 Refuse Storage - Residential
Prior to occupation of;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

Details of the arrangements for the storing of domestic refuse in that block shall be submitted to and approved in writing by the Local Planning Authority and the facilities approved shall be provided and made available for use by the occupiers of the dwellings and the facilities shall thereafter be retained and shall not be used or the space used for any other purpose.

Reason

To ensure that the refuse will be appropriately stored within the site thereby protecting the amenity of the site and the area in general from litter, odour and potential vermin/pest nuisance in accordance with The National Planning Policy Framework 2012, Strategic Policy 13 High Environmental Standards of the Core Strategy 201 and Saved Policies 3.2 Protection of Amenity and Policy 3.7 Waste Reduction of The Southwark Plan 2007

33 Refuse storage - Community space

Details of the arrangements for the storing of refuse for the community centre in Block 1 shall be submitted to and approved in writing by the Local Planning Authority prior to the community centre being brought into use and the facilities approved shall be provided and made available for use by the occupiers of the dwellings and the facilities shall thereafter be retained and shall not be used or the space used for any other purpose.

Reason

To ensure that the refuse will be appropriately stored within the site thereby protecting the amenity of the site and the area in general from litter, odour and potential vermin/pest nuisance in accordance with The National Planning Policy Framework 2012, Strategic Policy 13 High Environmental Standards of the Core Strategy 201 and Saved Policies 3.2 Protection of Amenity and Policy 3.7 Waste Reduction of The Southwark Plan 2007

34 Environment Agency - Remediation verification
Prior to the occupation of;

- a) Block 1
- b) Block 2
- c) Block 3
- d) Block 4
- e) Block 5
- f) Block 6

A verification report for the relevant block demonstrating completion of the works set out in the approved remediation strategy and the effectiveness of the remediation shall be submitted to and approved, in writing, by the Local Planning Authority. The report shall include results of sampling and monitoring carried out in accordance with the approved verification plan to demonstrate that the site remediation criteria have been met. It shall also include a plan (a 'long-term monitoring and maintenance plan') for longer-term monitoring of pollutant linkages, maintenance and arrangements for contingency action, as identified in the verification plan, if appropriate, and for the reporting of this to the Local Planning Authority. Any long-term monitoring and maintenance plan shall be implemented as approved.

Reason

Should remediation be deemed necessary, the applicant should demonstrate that any remedial measures have been undertaken as agreed and the environmental risks have been satisfactorily managed so that the site is deemed suitable for use.

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Compliance condition(s) - the following condition(s) impose restrictions and/or other requirements that must be complied with at all times once the permission has been implemented.

35 Residential Internal Noise Levels

The dwellings hereby permitted shall be designed to ensure that the following internal noise levels are not exceeded due to environmental noise:

Bedrooms - 30dB LAeq, T * and 45dB LAFmax T *

Living rooms- 35dB LAeq, T#

* - Night-time 8 hours between 23:00-07:00

- Daytime 16 hours between 07:00-23:00.

Reason

To ensure that the occupiers and users of the development do not suffer a loss of amenity by reason of excess noise from environmental and transportation sources in accordance with strategic policy 13 'High environmental standards' of the Core Strategy (2011) saved policies 3.2 'Protection of amenity' and 4.2 'Quality of residential accommodation' of the Southwark Plan (2007), and the National Planning Policy Framework 2012.

36 Residential Noise & Sound transmission between properties

The habitable rooms within the development sharing a party wall element (wall/ceiling/floor) with a separate residence shall be designed and constructed to provide reasonable resistance to the transmission of sound sufficient to ensure that the party wall is a minimum of 5dB improvement over the Building Regulations standard set out in Approved Document E.

Reason

To ensure that the occupiers and users of the proposed development do not suffer a loss of amenity by reason of noise nuisance and other excess noise from activities within the adjacent premises in accordance with strategic policy 13 'High environmental standards' of the Core Strategy (2011), saved Policy 3.2 Protection of Amenity of the Southwark Plan (2007) and the National Planning Policy Framework 2012.

37 Residential Noise Sound transmission between community uses and residential properties

Any party ceiling/floor element between a domestic and commercial/community use premises shall be designed and constructed to provide reasonable resistance to the transmission of sound sufficient to ensure that NR20, due to noise from the commercial/community premises, is not exceeded.

Reason

To ensure that the occupiers and users of the proposed development do not suffer a loss of amenity by reason of noise nuisance and other excess noise from activities within commercial premises in accordance with strategic policy 13 'High environmental standards' of the Core Strategy (2011), saved Policy 3.2 Protection of Amenity of the Southwark Plan (2007) and the National Planning Policy Framework 2012.

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38 Vibration

The development must be designed to ensure that habitable rooms in the residential element of the development are not exposed to vibration dose values in excess of 0.13 m/s during the night-time period of 23.00 - 07.00hrs.

Reason

To ensure that the occupiers and users of the proposed development do not suffer a loss of amenity by reason of excess vibration from transportation sources in accordance with strategic policy 13 'High environmental standards' of the Core Strategy (2011), saved Policy 3.2 Protection of Amenity of the Southwark Plan (2007) and the National Planning Policy Framework 2012.

39 CHP Management Plan Emissions standard

The CHP plant shall use natural gas and meet the relevant standard for its size stated in Appendix 7 of the London Mayor's Supplementary Planning Guidance on Sustainable Design and Construction.

Reason

To ensure the proposal minimises its impact on air quality in accordance with The National Planning Policy Framework 2012, Strategic Policy 13 High Environmental Standards of the Core Strategy 2011 and Saved Policies 3.3 Sustainability Assessment, 3.4 Energy Efficiency and 3.6 Air Quality of the Southwark Plan 2007.

40 The use hereby permitted for D Class purposes shall not be carried on outside of the hours 7:00 to 23:00 on Monday to Saturday or 08:00 to 22:00 on Sundays and public holidays.

Reason:

To safeguard the amenities of neighbouring residential properties in accordance with The National Planning Policy Framework 2012, Strategic Policy 13 High environmental standards of The Core Strategy 2011 and Saved Policy 3.2 Protection of Amenity of The Southwark Plan 2007.

41 Notwithstanding the provisions of Schedule 2, Part 1 of the Town and Country Planning General Permitted Development Order (or amendment or re-enactment thereof) no extension, enlargement or other alteration of the premises shall be carried out to the dwellinghouses hereby approved as part of Blocks 2 and 3.

Reason

To safeguard the character and the amenities of the premises and adjoining properties in accordance with Strategic Policy 13 - High environmental standards and Strategic Policy 12 - Design and conservation of The Core Strategy 2011 and Saved Policies 3.2 Protection of Amenity, 3.12 Quality in Design of the Southwark Plan 2007 and the National Planning Policy Framework 2012.

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TP(Permit)

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Date of Issue of this decision

Signed *Simon Bevan*

Director of Planning

Your attention is drawn to the notes accompanying this document

Any enquiries regarding this document should quote the LBS Registered Number and be sent to the Director of Planning, Southwark Council, Chief executive's department, Planning division, Development management, PO Box 64529, London SE1 5LX, or by email to planning.applications@southwark.gov.uk

UPRN: 10009790670

TP/H1059

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LBS Registered Number: 14/AP/3843

Date of issue of this decision:



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INFORMATIVE NOTES TO APPLICANT RELATING TO THE PROPOSED DEVELOPMENT

The term 'above grade' here means any works above ground level, but excludes any works consisting solely of demolition.

Thames Water requests that the Applicant should incorporate within their proposal, protection to the property by installing for example, a non-return valve or other suitable device to avoid the risk of backflow at a later date, on the assumption that the sewerage network may surcharge to ground level during storm conditions.

There are public sewers crossing or close to the development. In order to protect public sewers and to ensure that Thames Water can gain access to those sewers for future repair and maintenance, approval should be sought from Thames Water where the erection of a building or an extension to a building or underpinning work would be over the line of, or would come within 3 metres of, a public sewer. Thames Water will usually refuse such approval in respect of the construction of new buildings, but approval may be granted in some cases for extensions to existing buildings. The applicant is advised to contact Thames Water Developer Services on 0800 009 3921 to discuss the options available at this site.

Thames Water would recommend that petrol / oil interceptors be fitted in all car parking/washing/repair facilities. Failure to enforce the effective use of petrol / oil interceptors could result in oil-polluted discharges entering local watercourses.

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Date of issue of this decision:



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IMPORTANT NOTES RELATING TO THE COUNCIL'S DECISION

- [1] **APPEAL TO THE SECRETARY OF STATE.** If you are aggrieved by this decision of the council as the local planning authority to grant permission subject to conditions you can appeal to the Secretary of State under Section 78 of the Town and Country Planning Act 1990. If you appeal you must do so within six months of the date of this notice. The Secretary of State can allow a longer period for giving notice of an appeal but will not normally use this power unless there are special circumstances which excuse the delay in giving notice of appeal. The Secretary of State need not consider an appeal if it seems that the local planning authority could not have granted it without the conditions imposed, having regard to the statutory requirements, to the provisions of any development order and to any directions given under a development order. If you do decide to appeal you can do so using The Planning Inspectorate's online appeals service. You can find the service through the appeals area of the Planning Portal at www.planningportal.gov.uk/pcs. You can also appeal by completing the appropriate form which you can get from The Planning Inspectorate, Customer Support Unit, Temple Quay House, 2 The Square, Temple Quay, Bristol BS1 6PN [tel. 0117-3726372]. The form can also be downloaded from the Inspectorate's website at www.planning-inspectorate.gov.uk. The Planning Inspectorate will publish details of your appeal on the internet on the appeals area of the Planning Portal. This may include a copy of the original planning application form and relevant supporting documents supplied to the council by you or your agent, together with the completed appeal form and information you submit to The Planning Inspectorate. Please ensure that you only provide information, including personal information belonging to you, that you are happy will be made available to others in this way. If you supply information belonging to someone else please ensure you have their permission to do so. More detailed information about data protection and privacy matters is available on the Planning Portal.
- [2] **PURCHASE NOTICE.** If either the local planning authority or the Secretary of State grants permission subject to conditions, the owner may claim that the land can neither be put to a reasonably beneficial use in its existing state nor made capable of reasonably beneficial use by the carrying out of any development which has been or would be permitted. In these circumstances the owner may serve a purchase notice on the Council requiring the Council to purchase the owner's interest in the land in accordance with Part VI of the Town and Country Planning Act 1990.
- [3] **PROVISIONS FOR THE BENEFIT OF THE DISABLED.** Applicants are reminded that account needs to be taken of the statutory requirements of the Disability Discrimination Act 1995 to provide access and facilities for disabled people where planning permission is granted for any development which provides:
- (i) Buildings or premises to which the public are to be admitted whether on payment or otherwise. [Part III of the Act].
 - (ii) Premises in which people are employed to work as covered by the Health and Safety etc At Work Act 1974 and the Management of Health and Safety at Work Regulations as amended 1999. [Part II of the Act].
 - (iii) Premises to be used as a university, university college or college, school or hall of a university, or intended as an institution under the terms of the Further and Higher Education Act 1992. [Part IV of the Act].
- Attention is also drawn to British Standard 8300:2001 Disability Access, Access for disabled people to schools buildings – a management and design guide. Building Bulletin 91 (DfEE 99) and Approved Document M (Access to and use of buildings) of the Building Regulations 2000 or any such prescribed replacement.
- [4] **OTHER APPROVALS REQUIRED PRIOR TO THE IMPLEMENTATION OF PLANNING PERMISSION.** The granting of planning permission does not relieve the developer of the necessity for complying with any Local Acts, regulations, building by-laws and general statutory provisions in force in the area, or allow them to modify or affect any personal or restrictive covenants, easements, etc., applying to or affecting either the land to which the permission relates or any other land or the rights of any persons or authorities [including the London Borough of Southwark] entitled to the benefits thereof or holding an interest in the property concerned in the development permitted or in any adjoining property.
- [5] **WORKS AFFECTING THE PUBLIC HIGHWAY.** You are advised to consult the council's Highway Maintenance section [tel. 020-7525-2000] about any proposed works to, above or under any road, footway or forecourt.
- [6] **THE DULWICH ESTATE SCHEME OF MANAGEMENT.** Development of sites within the area covered by the Scheme of Management may also require the permission of the Dulwich Estate. If your property is in the Dulwich area with a post code of SE19, 21, 22, 24 or 26 you are advised to consult the Estates Governors', The Old College, Gallery Road SE21 7AE [tel: 020-8299-1000].
- [7] **BUILDING REGULATIONS.** You are advised to consult Southwark Building Control at the earliest possible moment to ascertain whether your proposal will require consent under the Building Act 1984 [as amended], Building Regulations 2000 [as amended], the London Building Acts or other statutes. A Building Control officer will advise as to the submission of any necessary applications, [tel. call centre number 0845 600 1285].
- [8] **THE PARTY WALL Etc. ACT 1996.** You are advised that you must notify all affected neighbours of work to an existing wall or floor/ceiling shared with another property, a new building on a boundary with neighbouring property or excavation near a

neighbouring building. An explanatory booklet aimed mainly at householders and small businesses can be obtained from the Department for Communities and Local Government [DCLG] Free Literature tel: 0870 1226 236 [quoting product code 02BR00862].

IMPORTANT: This is a PLANNING PERMISSION only and does not operate so as to grant any lease, tenancy or right of occupation of or entry to the land to which it refers.

RECOMMENDATION LDD MONITORING FORM REQUIRED

This document shows the case officer's recommended decision for the application referred to below.
This document is not a decision notice for this application.

Applicant	Notting Hill Housing Trust	Reg. Number	14/AP/3844
Application Type	Outline Planning Permission	Case	TP/H1059
Recommendation	Grant subject to Legal Agreement and GLA	Number	

Draft of Decision Notice

Planning Permission was GRANTED for the following development:

Outline application for: demolition of existing buildings and phased redevelopment to provide a mixed use development over 15 development plots comprising a number of buildings ranging between 2 to 20 storeys in height (12.45m - 68.85m AOD) with capacity for up to 2,745 residential units (Class C3), up to 2,500sqm of employment use (Class B1); up to 500sqm of retail space (Class A1); 3,100 to 4,750sqm of community use; medical centre and early years facility (Class D1); in addition to up to 3,000sqm flexible retail use (Class A1/A3/A4) or workspace use (Class B1); new landscaping; parks, public realm; energy centre; gas pressure reduction station; up to 1,098 car parking spaces; cycle parking; landscaping and associated works.

The application is accompanied by an Environmental Statement pursuant to the Town and Country Planning Regulations (Environmental Impact Assessment) 2011.

At: AYLESBURY ESTATE, LAND BOUNDED BY ALBANY ROAD, PORTLAND STREET, BAGSHOT STREET, ALVEY STREET, EAST STREET AND DAWES STREET, LONDON SE17

In accordance with application received on 13/10/2014

and Applicant's Drawing Nos. Planning Documents

Design & Access Statement: Masterplan Application v1 and Design & Access Statement Addendum v1, Design Code dated February 2015, Aylesbury Estate Development specification dated February 2015, Landscape Strategy: Masterplan Application v1 and Landscape Strategy Addendum v1, Arboricultural Impact Assessment prepared by Tamala Trees: Masterplan September 2014, Tree Strategy v1 and Tree Strategy addendum v1, Planning Statement dated February 2015, Affordable Housing Statement dated February 2015, Energy Assessment and District Heating Study – Version 2 dated February 2015, Transport Assessment and Addendum to Transport Assessment dated February 2015, Site Waste Management Strategy and Addendum to Site Wide Waste Management Strategy dated February 2015, Flood Risk Assessment v1, Sustainability Statement v1, Statement of Community Involvement, Environmental Statement Volumes 1-4 (and addendum February 2015), Townscape and Visual Impact Assessment Addendum, Non-technical summary and Addendum to Non-Technical Summary of the Environmental Statement dated February 2015.

Planning Drawings

NHH-AES-HTA-U-MPL-XX- M2 IP-01 Development Parcels and Subplots (dated February 2015)
NHH-AES-HTA-U-MPL-XX- M2 IP 02 Demolition Stages (Consolidated - dated July 2015)
NHH-AES-HTA-U-MPL- XX-M2 PP01 Extent of Masterplan Planning Application (dated February 2015)
NHH-AES-HTA-U-MPL-XX- M2 PP02- Access (dated February 2015)
NHH-AES-HTA-U-MPL-XX- M2 PP 03 Circulation (dated February 2015)
NHH-AES-HTA-U-MPL-XX- M2 PP 04 Development Parcel Extents (dated February 2015)
NHH-AES-HTA-U-MPL-XX- M2 PP 05 Publicly Accessible Open Space (Consolidated - dated July 2015)
NHH-AES- HTA-U-MPL-XX- M2 PP 06 Ground Floor Land Uses (Consolidated - dated July 2015)
NHH-AES- HTA-U-MPL-XX- M2 PP 07 Maximum Building Heights (dated February 2015)
NHH-AES- HTA-U-MPL-XX- M2 PP 08 Maximum Basement Area (dated February 2015)
NHH-AES- HTA-U-MPL-XX- M2 PP 09 Development Phasing (dated February 2015)
NHH-AES MPL M2 2900 Illustrative Masterplan (dated February 2015) Revision B
NHH-AES MPL M2 2901 Existing Trees Retained (received February 2015)

Design Code Strategy (Consolidated)
Development Specification (Consolidated)

Subject to the following sixty-five conditions:

Time limit for implementing this permission and the approved plans

- 1 The development hereby permitted shall not be carried out otherwise than in accordance with the following approved plans:

NHH-AES-HTA-U-MPL-XX-M2 PP01 Extent of Masterplan Planning Application (dated February 2015)
NHH-AES-HTA-U-MPL-XX- M2 PP02- Access (dated February 2015)
NHH-AES-HTA-U-MPL-XX- M2 PP 03 Circulation (dated February 2015)
NHH-AES-HTA-U-MPL-XX- M2 PP 04 Development Parcel Extents (dated February 2015)
NHH-AES-HTA-U-MPL-XX- M2 PP 05 Publicly Accessible Open Space (Consolidated - dated July 2015)
NHH-AES- HTA-U-MPL-XX- M2 PP 06 Ground Floor Land Uses (Consolidated - dated July 2015)
NHH-AES- HTA-U-MPL-XX- M2 PP 07 Maximum Building Heights (dated February 2015)
NHH-AES- HTA-U-MPL-XX- M2 PP 08 Maximum Basement Area (dated February 2015)
NHH-AES- HTA-U-MPL-XX- M2 PP 09 Development Phasing (dated February 2015)
NHH-AES -HTA-U-MPL-XX- M2 2900 Illustrative Masterplan (dated February 2015) Revision B
NHH-AES -HTA-U-MPL-XX- M2 2901 Existing Trees Retained (received February 2015)

Design Code Strategy (Consolidated)
Development Specification (Consolidated)

Reason:

For the avoidance of doubt and in the interests of proper planning.

2 Definitions

a) "Advance Infrastructure and Enabling works" means initial enabling and site set-up works required for a construction phase in accordance with details to be submitted to and approved by the Local Planning Authority (in consultation with Transport for London) which may include:

- site establishment and temporary welfare facilities and temporary site accommodation;
- installation of construction plant;
- temporary drainage, power, and water supply for construction; and
- Construction access and egress and/or site roads.

b) "Demolition Phase" means one of the seven phases of demolition set out in Table 5.3 of the Environmental Statement (October 2014) and identified on Drawing Reference NHH-AES-HTA-U-MPL-XX- M2 IP 02 Demolition Stages (Consolidated - dated July 2015)

c) 'Development Plot' or 'Plot' means an individual phase of construction as identified by the Detailed Development Stage Delivery Plan (s) as required by the Section 106 Agreement.h

d) "Development Stage " means any one of the eight seven development stages on the Outline Development identified on the Development Stage Key Infrastructure Plan as set out in the Section 106 Agreement.

e) Development Stages comprise separate parts of the development (and therefore separate chargeable developments) for the purpose of the Community Infrastructure Levy (CIL) Regulations 2010 (as amended), and in defining the individual development phases by which the outline permission can be implemented.

f) "The Section 106 Agreement" means the agreement made under Section 106 of the Town and Country Planning Act 1990 between Southwark Council and Notting Hill Housing Trust (Home Ownership Limited) dated the same date in August 2015 as the planning permission reference 14-AP-3844, or such other agreement or agreements that might replace or supersede it.

g) "Design Code Strategy" means a consolidated version of the Design Code (February 2015), Landscape Strategy and its Addendum (February 2015) which has been prepared for ease of reference but does not contain any additional material that was not already contained in the three separate documents.

h) "Consolidated - dated July 2015" means a version of the document or plan which has been corrected in accordance with a letter dated April 7th 2015 which set out clarifications and errors which were reported to Planning Committee.

3 Planning Permission Outline - Approval of details

a) Details of the access, appearance, landscaping, layout and scale (hereinafter called "the Reserved Matters") in

relation to the first Development Stage (s) shall be submitted to the Local Planning Authority within three years of the date of this permission and the development hereby permitted shall be begun either before the end of five years from the date of this permission or before the end of two years from the date of the final approval of the last Reserved Matters for the first Development Plot, or in the case of approval on different dates, the final approval of the last such matter to be approved. The development shall not be carried out otherwise than in accordance with this permission and any such approvals given.

b) Submission of all Reserved Matters in respect of all other Development Stages, public realm, infrastructure works, including the Energy Centre (and connections to each development plot), pedestrian and cycle routes, and highway works shall be submitted to and approved in writing by the Local Planning Authority (in consultation with the GLA and Transport for London) within 18 years from the date of this permission and thereafter the development shall not be carried out otherwise than in accordance with this permission and any such approvals given.

c) Development within a Development Stage shall be begun before the end of two years from the date of the approval of the last Reserved Matters in respect of that Development Stage and thereafter the development shall not be carried out otherwise than in accordance with this permission and any such approvals given.

Reason:

As required by Section 92 of the Town and Country Planning Act 1990 as amended and to ensure that the development is carried out in accordance with the programme assumptions underpinning the Environmental Impact Assessment process.

Pre-commencement condition(s) - the details required to be submitted for approval by the condition(s) listed below must be submitted to and approved by the council before any work in connection with implementing this permission is commenced.

- 5 Surface water/Drainage Strategy - details to be submitted
No development shall commence within a Plot until a surface water drainage strategy has been submitted to and approved by the Local Planning Authority (in consultation with Thames Water and the Environment Agency). The surface water drainage strategy shall provide for the implementation of a Sustainable Drainage System (SuDS) hierarchy and demonstrate that a reduction in surface water run-off rates of at least 50% above existing rate from the site during a 1% Annual Exceedance Probability (AEP) event will be achieved.

The drainage strategy shall include (but is not limited to):

Details of all existing drainage infrastructure setting out what is to be abandoned and what is to be retained.
Details of design standards and criteria, i.e. Southwark internal standards, MCHW, Sewers for Adoption etc.
Details of the proposed works.

Details of the proposed surface water drainage system.

Confirmation of all discharge rates, including details of any flow control. Thames Water's agreement of the discharge rates and copies of all relevant correspondence with Thames Water regarding connections to existing sewers.

Details of any flooding extents and flood paths. In the event of design exceedance, the flood flow route for appropriate return period flood events should be considered, and it should be demonstrated that the flooding will have no detriment to land or property as a result of overland flow caused by the development. It should also be demonstrated that the any flooding will not have any effects on overall safety with regards to residents, property and evacuation routes.

Details of the proposed foul water drainage system. This should include evidence that the capacity is available in any sewer the proposed system is connecting to.

Calculations to demonstrate that the proposed system is fit for purpose

Details of all sustainable drainage and attenuation measures, including freeboards

Details of any phasing or staggered construction. It should be demonstrated that foul water, surface water and combined systems are suitable at all times. This includes highlighting any infrastructure that is to be constructed for future rather than immediate use, and any temporary infrastructure.

The scheme shall be constructed to the approved details before the relevant part of the plot is completed and maintained permanently thereafter.

Reason

To minimise the potential for the site to contribute to surface water flooding and to improve and protect water quality, improve habitat and amenity and ensure future maintenance of the surface water drainage system in accordance with saved Policy 3.9 Water of the Southwark Plan 2007 and Strategic Policy 13 High Environmental Standards of the Core Strategy 2011 and guidance in the Sustainable Design and Construction SPD (2009).

6 Impact studies of water supply infrastructure

No development in connection within a Plot shall not commence (save for any Advance Infrastructure and Enabling Works or demolition) until impact studies of the existing water supply infrastructure for that Plot have been submitted to and approved in writing by the Local Planning Authority (in consultation with Thames Water). The studies shall determine the magnitude of any new additional capacity required in the system and a suitable connection point. The development shall be carried out in accordance with the approved details.

Reason

To ensure that sufficient capacity is made available to cope with new development and in order to avoid adverse environmental impacts on the community, and to ensure that the water supply infrastructure has sufficient capacity to cope with the/this additional demand in accordance with Policy 5.14 Water quality and wastewater infrastructure and Policy 5.13 Sustainable drainage of the London Plan 2011 and Saved Policies 3.1 Environmental Effects, and 3.9 Water of the Southwark Plan 2007 and Strategic Policy 13 High Environmental Standards of the Core Strategy 2011.

7 Drainage details to be submitted

No development in connection within a Plot shall not commence until a drainage strategy detailing any proposed on and/or off site drainage works, has been submitted to and approved in writing by, the local planning authority (in consultation with Thames Water). No discharge of foul or surface water from the site into the public sewer system shall take place until the drainage works referred to in the strategy have been approved and completed, which may be given for those parts of the Plot where it has been demonstrated that there is no resultant unacceptable risk to Controlled Waters. The development shall be carried out in accordance with the approved details.

Reason: To ensure that the development does not adversely affect local sewer capacity or directly causes any flooding in accordance with saved Policy 3.9 Water of the Southwark Plan 2007 and Strategic Policy 13 High Environmental Standards of the Core Strategy 2011 and guidance in the Sustainable Design and Construction SPD (2009).

8 Site enclosure- details to be submitted

No development in connection within a Plot shall commence until a scheme for temporary fencing and/or enclosure relating to that Plot has been submitted to and approved in writing by the Local Planning Authority. Any enclosure shall be erected in accordance with the approved details and thereafter shall be retained for the duration of the building works.

Reason

To ensure that the impacts during construction on occupiers of neighbouring properties in terms of pollution and nuisance are minimised and in the interests of visual and residential amenity in accordance with Strategic Policy 12 - Design and conservation of The Core Strategy 2011 and Saved Policies 3.2 Protection of amenity, 3.12 Quality in Design, and 3.13 Urban design of the Southwark Plan 2007.

9 Construction Method Statement and Environmental Management Plan

No foundations or underground structures works within a Plot shall commence (save for any Advance Infrastructure and enabling Works) until a Construction Method Statement and Environmental Management Plan has been submitted to and approved in writing by the Local Planning Authority (in consultation with Transport for London), unless otherwise agreed in writing with the Local Planning Authority.

The Construction Method Statement and Environmental Management Plan shall include (but is not limited to):
A detailed design and method statement for all phases of construction including foundations, basement and other below ground level works including piling (temporary and permanent) for construction of that development;
Engineering measures to eliminate or mitigate identified environmental impacts having regard to the submitted Environmental Statement (2014) and addendum (February 2015); e.g. acoustic screening, sound insulation, dust control, emission reduction, location of specific activities on site, having regard to the submitted Environmental Statement (2014) and addendum (February 2015) for all phases of construction;

Details of routes for construction vehicles, the types of vehicles expected, their frequency, their time of arrival and departure and temporary traffic measures which might be required during the course of construction phases;
 Details demonstrating accreditation of Contractors to the Fleet Operator Recognition Scheme;
 Details of the parking of vehicles of site operatives and vehicles;
 Details of loading and unloading of plant and materials and the storage of plant and materials used in constructing the development;
 Details of arrangements for direct responsive contact for nearby occupiers with the site management during construction (including signage on hoardings, newsletters, residents liaison meetings);
 Best practice measures in accordance with The London Mayors Supplementary Planning Guidance 'The Control of Dust and Emissions During Construction and Demolition', the Institute of Air Quality Management's 'Guidance on the Assessment of Dust from Demolition and Construction' and 'Guidance on Air Quality Monitoring in the Vicinity of Demolition and Construction Sites', BS5228 'Noise & Vibration on Construction and Open Sites' and relevant CIRIA practice notes and BRE practice notes unless otherwise approved in writing.

All construction work shall be undertaken in strict accordance with the approved plan and relevant codes of practice, subject to any amendments to the approved plan that are agreed in writing by the Local Planning Authority. Noise and dust monitoring locations will need to be agreed in writing with the local planning authority and monitoring shall be undertaken by appropriately qualified and experienced personnel using appropriate equipment that is in good working order. Monitoring of noise and dust impacts will take place to in accordance with the following:

- Noise Trigger level – 70dBA Laeq10hr (08.00 – 18.00hrs) or 75dBA Laeq 15min
- Noise Action level – 75dBA Laeq10hr (08.00 – 18.00hrs) or 80dBA Laeq 15min
- Dust trigger level – 250mg/m³
- Dust action level – 350mg/m³

Reason

To safeguard the interests of residential amenity and to ensure to ensure occupiers in the neighbouring area do not suffer a loss of amenity by reason of pollution and nuisance, in accordance with strategic policy 13 'High environmental standards' of the Core Strategy (2011) saved policy 3.2 'Protection of amenity' of the Southwark Plan (2007), and the National Planning Policy Framework 2012

- 10 Advance Infrastructure and Enabling Works - details to be submitted
- No Advance Infrastructure and Enabling Works shall take place until details of the proposed Advance Infrastructure and Enabling Works have been submitted to and approved in writing by the Local Planning Authority (in consultation with Transport for London). The submitted details shall include plans (at an appropriate scale) which show the proposed works in context, both existing and proposed, and shall, where relevant, be in accordance with the approved Parameter Plans and the Design Code Strategy and shall not prejudice or undermine the subsequent approval of Reserved Matters and/or other matters to be subsequently approved in accordance with these Conditions for the purposes of carrying out the Development or any of its Construction Phases. The Advance Infrastructure and Enabling Works may (subject as aforementioned to their not prejudicing or undermining subsequent approvals) be carried out prior to the submission and/or approval of the Reserved Matters Applications and the works shall not be carried out otherwise than in accordance with the approved details.

Reason

In order to ensure that all the necessary infrastructure and enabling works are carried out to the satisfaction of the Local Planning Authority and to allow the early undertaking of these works to facilitate the construction of the Development.

- 11 Bat survey
- A bat activity survey and bat roost survey will be required prior to the commencement of demolition of any buildings or tree works within Development Stage 2a, 2b, 2c, 3, 4a, 4b or 4c (with reference to approved Demolition Phasing Plan (NHH-AES-HTA-U-MPL-XX- M2 IP 02 Demolition Stages (Consolidated - dated July 2015) and shall be undertaken by a licensed bat worker. The surveys shall be submitted to and approved in writing by the Local Planning Authority before any demolition or tree work begins. These works shall be carried out in accordance with the recommendations contained in the approved survey.

Reason

To ensure compliance with the Habitats Regulations and Wildlife & Countryside Act 1981 (as amended) and in

accordance with Strategic Policy 11 Open spaces and wildlife of the Core Strategy 2011 and saved Policy 3.28 Biodiversity of the Southwark Plan 2007.

13 Tree Protection - details to be submitted

No Demolition Phase as defined by plan NHH-AES-HTA-U-MPL-XX- M2 IP 02 Demolition Stages (Consolidated - dated July 2015) shall commence until details have been submitted to and approved in writing by the Local Planning Authority for the relevant phase setting out how the retained trees shall be protected and managed in accordance with the recommendations contained in the Arboricultural Method Statement and the Site Wide Tree Strategy and with BS:5387 (2012) Trees in relation to design, demolition and construction. The approved protection measures shall be implemented prior to any works in connection with demolition and shall together with the approved management arrangements be retained for the duration of works on that Demolition Phase or such different period as may be agreed in writing by the Local Planning Authority.

No construction works in connection with a Plot shall commence (saved for Advance Infrastructure and Enabling works) until details have been submitted to and approved in writing by the Local Planning Authority setting out how the retained trees within that Plot shall be protected and managed in accordance with the recommendations in contained in the Arboricultural Method Statement and the Site Wide Tree Strategy and with BS:5387 (2012) Trees in relation to design, demolition and construction. The approved protection measures shall be implemented prior to any works in connection with that Plot and shall together with the approved management arrangements be retained for the duration of works within that Plot or such different period as may be agreed in writing by the Local Planning Authority.

Reason

To ensure the proposed development will preserve and enhance the visual amenities of the locality and will be designed for maximum benefit of screening, local biodiversity and adaption to climate change in accordance with Policy 2.18 Green Infrastructure, Policy 5.1 Climate Change Mitigation, Policy 5.10 Urban Greening, Policy 7.4 Local Character, and Policy 7.21 Trees and Woodlands of the London Plan 2011; Strategic Policy 11 Open spaces and wildlife, and Policy 3.2 Protection of amenity of the Southwark Plan.

14 Tree Protection - site supervision

No construction within a Plot shall commence (save for any Advance Infrastructure and Enabling) until details of an Arboricultural Method Statement describing the programme of site monitoring to be implemented have been submitted to and approved in writing by the Local Planning Authority. The Arboricultural Method Statement shall provide details of a scheme for arboricultural supervision whenever construction activity is to take place within or adjacent to any root protection area (or crown spread, where this is greater) or of trees that are to be retained in accordance with BS:5387 (2012) Trees in relation to design, demolition and construction sections 6.1 and 6.3.

Reason

To ensure the proposed development will preserve and enhance the visual amenities of the locality and will be designed for maximum benefit of screening, local biodiversity and adaptation to climate change in accordance with Policy 2.18 Green Infrastructure, Policy 5.1 Climate Change Mitigation, Policy 5.10 Urban Greening, Policy 7.4 Local Character, and Policy 7.21 Trees and Woodlands of the London Plan 2011; Strategic Policy 11 Open spaces and wildlife, Strategic Policy 12 Design and conservation, and Strategic Policy 13 High environmental standards; and Saved Policy 3.28 Biodiversity and Policy 3.2 Protection of amenity of the Southwark Plan 2007.

15 Archaeological evaluation

Before any work hereby authorised begins within Development Stage 4b as identified in the Section 106 Agreement, the applicant shall secure the implementation of a programme of archaeological evaluation works, including a geoarchaeological assessment, in accordance with a written scheme of investigation which shall be submitted to and approved in writing by the Local Planning Authority.

Reason

In order that the applicants supply the necessary archaeological information to ensure suitable mitigation measures and/or foundation design proposals be presented in accordance with Strategic Policy 12 - Design and Conservation of The Core Strategy 2011, Saved Policy 3.19 Archaeology of the Southwark Plan 2007 and the National Planning Policy Framework 2012.

16 Watching Brief

Before any work hereby authorised begins within Development Stage 3 as identified in the Section 106

Agreement, the applicant shall secure the implementation of a programme of archaeological works and an archaeological watching brief, in accordance with a written scheme of investigation, which shall be submitted to and approved in writing by the Local Planning Authority.

Reason

In order that the details of the programme of works for the archaeological watching brief are suitable with regard to the impacts of the proposed development and the nature and extent of archaeological remains on site in accordance with Strategic Policy 12 - Design and Conservation of The Core Strategy 2011, Saved Policy 3.19 Archaeology of the Southwark Plan 2007 and the National Planning Policy Framework 2012.

17 Archaeological mitigation

Before any work hereby authorised begins within Development Stage 4b or Development Stage 4c as identified in the Section 106 Agreement, excluding demolition, the applicant shall secure the implementation of a programme of archaeological mitigation works in accordance with a written scheme of investigation, which shall be submitted to and approved in writing by the Local Planning Authority.

Reason

In order that the details of the programme of works for the archaeological mitigation are suitable with regard to the impacts of the proposed development and the nature and extent of archaeological remains on site in accordance with Strategic Policy 12 - Design and Conservation of The Core Strategy 2011, Saved Policy 3.19 Archaeology of the Southwark Plan 2007 and the National Planning Policy Framework 2012.

18 Archaeological Building Recording

Before any work, including demolition, hereby authorised begins, the applicant or successors in title shall secure the implementation of a programme of archaeological building recording in accordance with a written scheme of investigation, which shall be submitted to and approved in writing by the Local Planning Authority.

Reason

In order that the archaeological operations are undertaken to a suitable standard as to the details of the programme of works for the archaeological building recording in accordance with PPS5, Strategic Policy 12 - Design and Conservation of The Core Strategy 2011 and Saved Policy 3.19 Archaeology of the Southwark Plan 2007.

19 No development within a demolition phase shall commence until a Demolition Environmental Management Plan has been submitted to and approved by the Local Planning Authority (in consultation with Transport for London),

The Demolition Environmental Management Plan shall include (but is not limited to):

A detailed specification of the methodology for demolition and site preparation works including consideration of all environmental impacts and the identified remedial measures;

Engineering measures to eliminate or mitigate identified environmental impacts in the environmental statement e.g. site perimeter hoardings, acoustic screening, sound insulation, dust control, emission reduction, location of specific activities on site, having regard to the submitted Environmental Statement (2014) and addendum (February 2015);

Details to demonstrate Implementation of the ICE Demolition Protocol and Considerate Contractor Scheme; Details of routes for demolition vehicles, the types of vehicles expected, their frequency, their time of arrival and departure and temporary traffic measures which might be required during the course of demolition, advance infrastructure works and enabling works

Details demonstrating accreditation of Contractors to the Fleet Operator Recognition Scheme Details of arrangements for direct responsive contact for nearby occupiers with the site management during demolition (including signage on hoardings, newsletters, residents liaison meetings)

Best practice measures in accordance with The Mayor of London's Supplementary Planning Guidance 'The Control of Dust and Emissions During Construction and Demolition', the Institute of Air Quality Management's 'Guidance on the Assessment of Dust from Demolition and Construction' and 'Guidance on Air Quality Monitoring in the Vicinity of Demolition and Construction Sites', BS5228 'Noise & Vibration on Construction and Open Sites' and relevant CIRIA practice notes and BRE practice notes unless otherwise approved in writing include details of how the waste will be recycled and/or disposed of and managed during demolition including separation, storage, transportation and disposal.

Proposals for continuous particulate (dust) monitoring surveys (including monitoring locations, methodologies, frequency and method of results reporting)

Proposals for continuous noise monitoring (including monitoring locations, methodologies, frequency and method of results reporting) during the

All demolition work shall be undertaken in strict accordance with the approved plan and relevant codes of practice,

subject to any amendments to the approved plan that are agreed in writing by the Local Planning Authority. Noise and dust monitoring locations will need to be agreed in writing with the local planning authority and monitoring shall be undertaken by appropriately qualified and experienced personnel using appropriate equipment that is in good working order. Monitoring of noise and dust impacts will take place to in accordance with the following: :

- Noise Trigger level – 70dBA Laeq10hr (08.00 – 18.00hrs) or 75dBA Laeq 15min
- Noise Action level – 75dBA Laeq10hr (08.00 – 18.00hrs) or 80dBA Laeq 15min
- Dust trigger level – 250mg/m³
- Dust action level – 350mg/m³No

Reason

To ensure that occupiers of neighbouring premises and the wider environment do not suffer a loss of amenity by reason of pollution and nuisance, in accordance with strategic policy 13 'High environmental standards' of the Core Strategy (2011) saved policy 3.2 'Protection of amenity' of the Southwark Plan (2007), and the National Planning Policy Framework 2012

20 Site contamination

Prior to the commencement of works associated with a Plot, the following components of a scheme to deal with the risks associated with contamination of the site shall each be submitted to, and approved in writing by, the Local Planning Authority:

- 1) a site investigation scheme, based on the submitted geo-environmental and geotechnical preliminary risk assessment by WSP UK Ltd (dated 22 September 2014 with reference 50600304), to provide information for a detailed assessment of the risk to all receptors which may be affected, including those off site;
- 2) the results of the site investigation and detailed risk assessment referred to in (1) and, based on these, an options appraisal and remediation strategy giving full details of the remediation measures required and how they are to be undertaken;
- 3) a verification plan providing details of the data which will be collected in order to demonstrate that the works set out in the remediation strategy in (2) are complete and identifying any requirements for longer-term monitoring of pollutant linkages, maintenance and arrangements for contingency action.

Any changes to these components require the express consent of the Local Planning Authority. The scheme shall be implemented as approved.

Reason

For the protection of controlled waters. The site is located over a Secondary Aquifer and it is understood that the site may be affected by historic contamination and therefore to ensure that risks from land contamination to the future users of the land and neighbouring land are minimised, together with those to controlled waters, property and ecological systems, and to ensure that the development can be carried out safely without unacceptable risks to workers, neighbours and other offsite receptors in accordance with saved Policy 3.2 'Protection of amenity' of the Southwark Plan 2007 and Strategic Policy 13' High environmental standards' of the Core Strategy 2011.

21 Car parking - details to be submitted

Details of the car parking layout, including details of any associated manoeuvring area(s) for a Plot Phase shall be submitted to and approved by the Local Planning Authority before foundations or underground structures works within a Plot commence and the development shall not be carried out otherwise than in accordance with any approval given.

Reason:

To ensure that adequate facilities are provided in accordance with the standards set out in Saved Policies 5.6 Car Parking and 5.7 Parking Standards for Disabled People and the Mobility Impaired of the Southwark Plan 2007 and Strategic Policy 2 Sustainable Transport of the Core Strategy 2011.

Commencement of works above grade - the details required to be submitted for approval by the condition(s) listed below must be submitted to and approved by the council before any work above grade is commenced. The term 'above grade' here means any works above ground level.

22 Cycle storage - visitors

Details of secure facilities to be provided for the on-street parking of cycles for visitors in connection with

development within a Plot shall be submitted to and approved in writing by the Local Planning Authority before above grade works is commenced for that Plot and the Plot shall not be occupied before any such facilities as may have been approved have been provided. Thereafter the cycle parking facilities provided shall be retained and the space used for no other purpose without the prior written approval of the Local Planning Authority.

Reason

In order to ensure that satisfactory safe and secure cycle parking facilities are provided and retained in order to encourage the use of cycling as an alternative means of transport to the development and to reduce reliance on the use of the private car in accordance with policy 5.3 Walking and Cycling of the Southwark Plan 2007 and Strategic Policy 2 - Sustainable transport of the Core Strategy 2011.

23 Cycle storage -details to be submitted

Details of the facilities to be provided for the secure storage of cycles for residents and non-residential uses for a Plot shall be submitted to and approved by the Local Planning Authority before the development hereby approved is commenced above grade for that Plot and shall not be occupied until any such facilities as may have been approved have been provided. Thereafter the cycle parking facilities provided shall be retained and the space used for no other purpose without the prior written consent of the Local Planning Authority.

Reason

In order to ensure that satisfactory safe and secure cycle parking facilities are provided and retained in order to encourage the use of cycling as an alternative means of transport to the development and to reduce reliance on the use of the private car in accordance with saved Policy 5.3 Walking and Cycling of the Southwark Plan 2007 and Strategic Policy 2 - Sustainable transport of the Core Strategy 2011.

24 Design- section detail-drawings

1:5 / 1:10 section detail-drawings through:

- the facades;
- parapets;
- roof edges;
- heads, cills and jambs of all openings and balconies; and
- shopfronts and entrances.

to be used in the carrying out of each Plot shall be submitted to and approved by the Local Planning Authority before any above grade works are carried out for that Plot. The development shall not be carried out otherwise than in accordance with any such approval given.

Reason:

In order that the Local Planning Authority may be satisfied as to the design and details in the interest of the visual amenity in accordance with Policies PL2 Design principles and PL4 Building heights of the Aylesbury Area Action Plan (2010), Policies 3.12 Quality in Design and 3.13 Urban Design of The Southwark Plan 2007 and Strategic Policy 12 - Design and conservation of the Core Strategy 2011.

25 Design - samples to be submitted

Samples of all external facing materials to be used in the carrying out of the development hereby permitted shall be presented on site or at another location to be agreed with the Local Planning Authority before any above grade work in connection with that Plot is carried out above grade. The development shall not be carried out otherwise than in accordance with any such approval given.

Reason:

In order that the Local Planning Authority may be satisfied as to the design and details in accordance with Policies PL2 Design principles and PL4 Building heights of the Aylesbury Area Action Plan (2010), Policies 3.12 Quality in Design and 3.13 Urban Design of The Southwark Plan 2007 and Strategic Policy 12 Design and conservation of the Core Strategy 2011.

26 Green /brown roofs- details to be submitted

Details of green and brown roofs (including a specification and maintenance plan) to be provided in a Plot shall be submitted to and approved in writing by the Local Planning Authority before any above grade work in connection with the green and brown roofs for the relevant Plot is carried out and the development shall not be carried out otherwise than in accordance with any such approval given.

Reason

To ensure that the proposed development will preserve and enhance the visual amenities of the locality and is designed for the maximum benefit of local biodiversity, in addition to the attenuation of surface water runoff, in

accordance with policy 3.28 Biodiversity of the Southwark Plan 2007 and Strategic Policy 13 & High environmental standards of the Core Strategy 2011.

27 Landscaping – details to be submitted

Before any of the landscape works within a Plot hereby approved have commenced above grade, detailed drawings of a hard and soft landscaping scheme(s) at a scale of 1:100 showing the treatment of all parts of the Plot not covered by buildings shall be submitted to and approved in writing by the Local Planning Authority.

Drawings should include details of planting, trees, surfacing materials of any access or pathways layouts, edge details, seating, residential courtyard, its boundary treatment, climbing plants, play equipment, private amenity strips and communal roof terrace, and a landscaping implementation and maintenance programme including the time of planting.

The landscaping shall not be carried out otherwise than in accordance with any such approval given and shall be retained for the duration of the use.

The planting, seeding and/or turfing shall be carried out in the first planting season following completion of building works and any trees or shrubs that are found to be dead, dying, severely damaged or diseased within three years of the completion of the building works OR three years of the carrying out of the landscaping scheme (whichever is later), shall be replaced in the next planting season by specimens of the same size and species in the first suitable planting season.

Planting shall comply to BS: 4428 Code of practice for general landscaping operations, BS: 5837 (2012) Trees in relation to demolition, design and construction and BS 7370-4:1993 Grounds maintenance Recommendations for maintenance of soft landscape (other than amenity turf).

Reason

So that the Council may be satisfied with the details of the landscaping scheme in accordance with The National Planning Policy Framework 2012 Parts 7, 8, 11 & 12 and policies of the Core Strategy 2011: SP11 Open spaces and wildlife; SP12 Design and conservation; SP13 High environmental standards, and Saved Policies of the Southwark Plan 2007: Policy 3.2 Protection of amenity; Policy 3.12 Quality in Design; Policy 3.13 Urban Design and Policy 3.28 Biodiversity.

Pre-occupation condition(s) - the details required to be submitted for approval by the condition(s) listed below must be submitted to and approved by the council before the building(s) hereby permitted are occupied or the use hereby permitted is commenced.

28 Plant Noise

The rated noise level from any plant, together with any associated ducting shall be 10 dB(A) or more below the lowest relevant measured LA90 (15min) at the nearest noise sensitive premises, including those within the development. Prior to the commencement of the authorised use within a Plot, a written acoustic report detailing the proposed scheme shall be submitted to and approved by the Local Planning Authority. The method of assessment is to be carried in accordance with BS4142:1997 'Rating industrial noise affecting mixed residential and industrial areas'. The plant and equipment shall be installed and constructed in accordance with the approval given and shall be permanently maintained thereafter in accordance with the approval given. Prior to the plant being commissioned a validation test shall be carried out following completion of the development. The results shall be submitted to the LPA for approval in writing.

Reason

To ensure that occupiers of neighbouring premises do not suffer a loss of amenity by reason of noise nuisance or the local environment from noise creep due to plant and machinery in accordance with the National Planning Policy Framework 2012, Strategic Policy 13 High Environmental Standards of the Core Strategy 2011 and Saved Policy 3.2 Protection of Amenity of the Southwark Plan (2007).

29 Residential - Vertical sound transmission between potentially loud commercial/community uses and residential properties
The habitable rooms within a Plot sharing a party ceiling/floor element with a B1 use, A1/A3/A4 use or D1/D2 use

hereby permitted shall be designed and constructed to provide reasonable resistance to the transmission of sound sufficient to ensure that noise from the commercial or community premises does not exceed NR20.

A written report shall be submitted to and approved by the Local Planning Authority in writing prior to the commencement of the use within the relevant Plot and the approved scheme shall be permanently maintained thereafter unless otherwise agreed in writing by the Local Planning Authority.

Reason

To ensure that the occupiers and users of the proposed development do not suffer a loss of amenity by reason of noise nuisance and other excess noise from activities within the commercial premises accordance with strategic policy 13 'High environmental standards' of the Core Strategy (2011), saved Policy 3.2 Protection of Amenity of the Southwark Plan (2007) and the National Planning Policy Framework 2012.

- 30 Residential - Sound transmission between properties
The soundproofing between bedrooms and rooms designed for other purposes (living rooms / kitchens etc) of the dwellings shall be designed and constructed to ensure that there will be a minimum of 5dB improvement compared with the Building Regulations standard set out in Approved Document E.

No dwelling within a Plot shall be occupied until a test has been carried out and the results submitted to the Local Planning Authority for approval in respect of that Plot to demonstrate that the above standards have been met. The approved scheme shall be permanently maintained thereafter.

Reason

To ensure that the occupiers and users of the proposed development do not suffer a loss of amenity by reason of noise nuisance and other excess noise from activities within the adjacent premises accordance with strategic policy 13 'High environmental standards' of the Core Strategy (2011), saved Policy 3.2 Protection of Amenity of the Southwark Plan (2007) and the National Planning Policy Framework 2012.

- 31 Residential - Internal noise levels
The dwellings hereby permitted shall be designed and constructed to ensure that the following internal noise levels are not exceeded due to environmental noise:
Bedrooms - 35dB LAeq T $\bar{\Delta}$, 30 dB LAeq T*, 45dB LAFmax T *
Living rooms- 35dB LAeq T $\bar{\Delta}$
Dining room - 40 dB LAeq T $\bar{\Delta}$
* - Night-time - 8 hours between 23:00-07:00
 $\bar{\Delta}$ - Daytime - 16 hours between 07:00-23:00

A report shall be submitted to and approved in writing by the Local Planning Authority prior to the occupation of dwellings within the relevant Plot and shall be permanently maintained thereafter in accordance with the approval given unless otherwise agreed in writing by the Local Planning Authority.

To ensure that the occupiers and users of the development do not suffer a loss of amenity by reason of excess noise from environmental and transportation sources in accordance with strategic policy 13 'High environmental standards' of the Core Strategy (2011) saved policies 3.2 'Protection of amenity' and 4.2 'Quality of residential accommodation' of the Southwark Plan (2007), and the National Planning Policy Framework 2012.

- 32 Verification report
Prior to occupation of any block within a Plot, a verification report demonstrating completion of the works set out in the approved remediation strategy and the effectiveness of the remediation shall be submitted to and approved, in writing, by the Local Planning Authority. The report shall include results of sampling and monitoring carried out in accordance with the approved verification plan to demonstrate that the site remediation criteria have been met. It shall also include a plan (a 'long-term monitoring and maintenance plan') for longer-term monitoring of pollutant linkages, maintenance and arrangements for contingency action, as identified in the verification plan, if appropriate, and for the reporting of this to the Local Planning Authority. Any long-term monitoring and maintenance plan shall be implemented as approved.

Reason

Should remediation be deemed necessary, the applicant should demonstrate that any remedial measures have been undertaken as agreed and the environmental risks have been satisfactorily managed so that the site is deemed suitable for use in accordance with saved Policy 3.2 'Protection of amenity' of the Southwark Plan 2007 and Strategic Policy 13 'High environmental standards' of the Core Strategy 2011.

- 33 No meter boxes, flues, vents or pipes [other than rainwater pipes] or other appurtenances not shown on the approved drawings shall be fixed or installed on the street elevation[s] of the building[s].

Reason

To ensure such works do not detract from the appearance of the building (s) in accordance with The National Planning Policy Framework 2012, Strategic Policy 12 - Design and Conservation of The Core Strategy 2011 and Saved Policies 3.12 Quality in Design and 3.13 Urban Design of The Southwark Plan 2007.

- 34 BREEAM

a) All commercial units over 1,000 sqm (GEA) shall be designed and constructed to achieve a minimum BREEAM rating of 'Excellent' or in the case of Class D1 community uses over 1,000sqm (GEA) a minimum rating of 'Very good' for those units unless otherwise agreed in writing by the Local Planning Authority. The development shall not be carried out otherwise than in accordance with any such approval given.

b) Before first occupation of the commercial, community or retail floorspace in a Plot where (a) is applicable, a certified Post Construction Review (or other verification process agreed with the local planning authority) shall be submitted to and approved in writing by the Local Planning Authority for that Plot, confirming that the agreed standards at (a) have been met.

Reason

To ensure the proposal complies with Strategic Policy 13 - High Environmental Standards of The Core Strategy 2011 and Saved Policies 3.3 Sustainability and 3.4 Energy Efficiency of the Southwark Plan 2007.

- 35 Refuse Storage and Collection - domestic

Dwellings within a block provided within a Plot shall not be occupied before the refuse and storage facilities approved for the relevant block have been provided and made available for use by occupiers of the dwellings. The facilities shall thereafter be retained for refuse storage and the space used for no other purpose without the prior written consent of the Local Planning Authority

Reason

In order that the Council may be satisfied that suitable facilities for the storage of refuse will be provided and retained in the interest of protecting the amenity of the site and the area in general from litter, odour and potential vermin/pest nuisance in accordance with Policy 3.7 Waste reduction of the Southwark Plan and Strategic Policy 13 - High environmental standards of the Core Strategy 2011.

- 36 Refuse Storage and Collection - commercial

The commercial units provided as part of a Plot shall not be occupied before details of the arrangements for the storing of refuse, including recyclable material for the relevant unit have been submitted to and approved by the Local Planning Authority. The facilities shall thereafter be retained for refuse storage and the space used for no other purpose without the prior written consent of the Local Planning Authority

Reason

In order that the Council may be satisfied that suitable facilities for the storage of refuse will be provided and retained in the interest of protecting the amenity of the site and the area in general from litter, odour and potential vermin/pest nuisance in accordance with Policy 3.7 Waste reduction of the Southwark Plan and Strategic Policy 13 - High environmental standards of the Core Strategy 2011.

- 37 Delivery of parking

Prior to occupation of any block within a Plot, the on-site parking facilities approved shall be constructed for the sole use of occupiers of the relevant block and thereafter permanently retained and used for no other purpose without the written approval of the Local Planning Authority.

Reason

To ensure that adequate facilities are provided in accordance with the standards set out in Saved Policies 5.6, Car Parking and 5.7 Parking Standards for Disabled People and the Mobility Impaired of the Southwark Plan 2007 and Strategic Policy 2 Sustainable Transport of the Core Strategy 2011.

- 38 Biodiversity and ecological mitigation measures

An Environmental Action Plan detailing proposed ecological mitigation measures for a Plot shall be submitted to

and approved in writing by the Local Planning Authority within 6 months of the implementation of that Plot. The measures shall accord with those described in the Environmental Statement (September 2014) and Addendum (February 2014) and include:

- provision of bat boxes
- provision of bird boxes
- Intensive native planting to support biodiverse flora and fauna

The measures so approved shall be carried out prior to the occupation of buildings within that Plot and thereafter maintained.

Reason

To ensure the proposal protects and enhances biodiversity in accordance with Strategic Policy 11 - Open spaces and wildlife of The Core Strategy 2011 and Saved Policy 3.28 Biodiversity of The Southwark Plan 2007.

39 CHP Plant - General

Before the Combined Heat and Power (CHP) plant is commissioned for use, the developer will submit a report advising of the full particulars of the CHP plant, including (but not limited to) location, layout, operation, management plan, management responsibilities, maintenance schedule, fuel supply, height of flue, emissions impact on local air quality and proposed emission mitigation equipment for approval in writing by, the Local Planning Authority. The CHP plant shall not be constructed or operated other than in accordance with approval from the Local Planning Authority subject to any amendments agreed in writing.

Reason

In order that the Local Planning Authority may be satisfied that the operation and management of the CHP plant will be adequate and effective, to ensure the development minimises its impact on air quality and amenity in accordance with The National Planning Policy Framework 2012, Strategic Policy 13 High Environmental Standards of the Core Strategy 2011 and Saved Policies 3.3 Sustainability Assessment, 3.4 Energy Efficiency and 3.6 Air Quality of the Southwark Plan 2007.

40 Service Management Plan

Before the first occupation of any B1 use, A1/A3/A4 use or community use hereby permitted within a Plot a Service Management Plan detailing how all elements of that Plot are to be serviced shall be submitted for approval in writing to the Local Planning Authority. The servicing of the development shall be carried out in accordance with the approval given and the Service Management Plan shall remain extant for as long as the development is in use.

Reason

To ensure compliance with The National Planning Policy Framework 2012, Strategic Policy 2 Sustainable Transport of The Core Strategy 2011 and Saved Policy 5.2 Transport Impacts of the Southwark Plan 2007.

Compliance condition(s) - the following condition(s) impose restrictions and/or other requirements that must be complied with at all times once the permission has been implemented.

- 41** The development hereby permitted shall not commence until the development permitted by planning permission reference 14/AP/3843 has commenced.

Reason

To ensure that the environmental effects resulting from the sequence of development phases reflects the Environmental Statement (2014) and addendum (February 2015) in accordance with the Town and Country Planning (Environmental Impact Assessment) Regulations 2011.

- 42** The development will comply with all surface water runoff requirements as defined by Thames Water; this also includes consideration of foul sewer discharge rates.

Reason: To ensure that the development does not adversely affect local sewer capacity or directly causes any flooding in accordance with saved Policy 3.9 Water of the Southwark Plan 2007 and Strategic Policy 13 High Environmental Standards of the Core Strategy 2011 and guidance in the Sustainable Design and Construction SPD (2009).

- 43 No works within a Plot shall commence (save for any Advance Infrastructure and Enabling Works or) until written approval of Reserved Matters comprising access, scale, appearance, layout, and landscaping for that Plot has been obtained from the Local Planning Authority. The development shall be undertaken in accordance with the approved details.

Reason

As required by Section 92 of the Town and Country Planning Act 1990 and in the interests of proper planning.

- 44 Reserved matters details to be submitted
Each Reserved Matters Application shall include a reconciliation plan or statement showing how the proposed Development Stage complies with the approved site wide development controls (i.e. Parameter Plans / Development Specification / Design Code), and in relation to the matter of **access** a Reserved Matters application shall include:

- (a) details (including specifications) of the access to and within the Development Stage lot for vehicles, cycles and pedestrians including details of any associated manoeuvring areas (with regard to Access for All standards)
- (b) details of any security measure that will be implemented to achieve 'Secure by Design' accreditation
- (c) details of how all elements of that Reserved matter application are to be serviced

and in relation to the matter of **layout** a Reserved Matters application shall include (but not limited to):

- (d) details of the siting of the proposed building or buildings and any relevant above ground roads, highways parking, vehicle standing and servicing areas or landscaping associated with the Development Stage to which the reserved matter relates
- (e) details of any necessary temporary layout associated with boundary treatment and condition between the Development Stage or Plot (as appropriate)
- (f) details of the basement layout, including parking areas, servicing areas, secure cycle storage for residential and non-residential areas and plant areas
- (g) details of the internal layout of buildings
- (h) details of the arrangements for adequate space and facilities for the sorting, storing and recycling of refuse

and in relation to the matter of **scale** a Reserved Matters application shall include:

- (i) a statement (including accompanying design material, townscape views and detailed plans at an appropriate scale) to demonstrate that the scale of the development accords with the relevant thresholds and parameters set out in the approved Parameter Plans and Design Code Strategy.

and in relation to the matter of **appearance** a Reserved Matters application shall include:

- (j) a statement together with detailed plans, drawings, sections, and elevations to explain full details of the proposed detailed design and materials to be used on all external elevations of the building(s) and how the appearance of the development accords with the relevant parameters set out in the approved Design Code Strategy

- (k) Plans and drawings showing a scheme for the ventilation (internal to the proposed building) and an appropriate outlet, for any floorspace capable of being used for Class A3 or A4 purposes in a Plot

and in relation to the matter of **landscaping** a Reserved Matters application shall include:

- (l) plans, drawings, sections, and specifications (including soil volumes, weight loading and maintenance plan in respect of raised courtyards) to explain full details of the hard and soft landscaping works, including finished floor levels, proposed drainage arrangements, children's play equipment, private and communal amenity areas, and planting (including green I brown roofs I living walls I vertical gardens and planters);

- (m) details of any external lighting (including: design; power and position of luminaries; light intensity contours) of all external areas, both within and beyond the boundary of the development,

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- (n) a statement (including accompanying design material) to demonstrate that the landscaping works accord with the Design Code

- (o) tree planting details and specification of all other planting

- (p) details of the programme for implementing and completing the planting.

and in relation to **non-residential floorspace** shall include:

A travel plan where the proposed non-residential floorspace either meets or exceeds the Travel plan thresholds set out in Table 2.1 of the document titled 'Guidance for workplace travel planning for development' prepared by Transport for London (as amended)

Reason

In order that the Reserved Matters Applications can be properly considered and assessed against the approved Parameter Plans, Design Code and Development Specification and to enable a full and proper assessment of the transport related impacts of the development in accordance with the Sustainable Transport SPD (2010).

45 Tree shrub - quality control

Any tree or shrub required to be retained or to be planted as part of a landscaping scheme approved, that is found dead, dying, severely damaged or seriously diseased within three years of the completion of buildings works for a Development Plot OR three years of the carrying out of the landscaping scheme (whichever is the latter), shall be replaced in accordance with the principles of the approved Site Wide Tree Strategy.

Reason

To ensure the approved landscaping scheme is maintained for an adequate period of time following construction in accordance with saved Policy 3.12 Quality in design of the Southwark Plan 2007 and Strategic Policies 11 - Open spaces and wildlife and 12 - Design and conservation of the Core Strategy 2011.

46 Open Site Consolidation/Sealing

In the event that construction works have not commenced within six months of the completion of demolition works in connection with a Development Stage, the surface of the Plot shall be covered, sealed, or seeded to ensure it is effectively consolidated. The treatment shall be maintained or repeated to ensure it remains effective until construction works commence and this requirement applies particularly to aggregate and soil storage bunds.

Reason

To ensure that the impacts of demolition on occupiers of neighbouring premises and the wider environment by reason of pollution and nuisance are minimised in accordance with Strategic Policy 13 High environmental standards of the Core Strategy 2011 and Saved policy 3.2 Protection of amenity of the Southwark Plan 2007.

47 Site Perimeter Hoarding

Any site perimeter hoardings approved in writing by the Local Planning Authority shall be constructed in accordance with any such approval and shall remain in place for the duration of the demolition and construction and subsequently replaced by permanent or other temporary boundary treatment as approved by the Local Planning Authority.

Reason

To ensure that the impacts of demolition on occupiers of neighbouring premises and the wider environment by reason of pollution and nuisance are minimised and to safeguard infrastructure on or in the vicinity of the site and the visual amenity of the area in accordance with Strategic Policy 13 High environmental standards of the Core Strategy 2011 and Saved Policy 3.2 Protection of amenity of the Southwark Plan 2007.

- 48** If, during development, contamination not previously identified is found to be present at the site then no further development (unless otherwise agreed in writing with the Local Planning Authority in consultation with the Environment Agency) shall be carried out until the developer has submitted, and obtained written approval from the Local Planning Authority for, a remediation strategy detailing how this unidentified contamination shall be dealt with. The remediation strategy shall be implemented as approved, verified and reported to the satisfaction of the Local Planning Authority.

Reason

For the protection of controlled waters in accordance with saved Policy 3.9 Water of the Southwark Plan 2007 and Strategic Policy 13 High Environmental Standards of the Core Strategy 2011 and guidance in the Sustainable Design and Construction SPD (2009).

- 49 Water use
Residential dwellings shall be designed and constructed to achieve a portable water use target of 105L per person per day

Reason

To conserve water in accordance with Policy BH7 Sustainable design and construction of the Aylesbury Area Action Plan (2010), Strategic Policy 13 - High Environmental Standards of The Core Strategy 2011, Saved policy 3.9 Water of the Southwark Plan 2007 and the Sustainable Design and Construction SPD (2009)

- 50 The 'Secure by design' measures approved for each Development Stage or Plot shall be constructed and implemented prior to occupation and maintained thereafter for the lifetime of the development unless otherwise approved in writing by the Local Planning Authority.

Reason

In pursuance of the Local Planning Authority's duty under section 17 of the Crime and Disorder Act 1998 to consider crime and disorder implications in exercising its planning functions and to improve community safety and crime prevention in accordance with Policy PL2 Design principles and PL3 Building block types and layout of the Aylesbury Area Action Plan (2010) and Saved Policy 3.14 Designing out crime of the Southwark Plan 2007.

- 51 Car Parking
Car parking for the development hereby permitted shall not unless otherwise agreed in writing by the Local Planning Authority exceed 1098 parking spaces, excluding spaces allocated for car club uses

Reason

To ensure car parking provision and transport impacts are in accordance with the submitted Environmental Statement (2014) and addendum (2015) and Policy TP3 Parking Standards of the Aylesbury Area Action Plan (2010).

- 52 Flood Risk - Approved Plans
The development hereby permitted shall be carried out in full accordance with the recommendations of the approved Flood Risk Assessment prepared by WSP dated 23/9/14. This includes the provision of sustainable drainage features as detailed in section 8 of the assessment.

Reason

To ensure the development is designed safely in reference to flood risk in accordance with saved Policy 3.9 Water of the Southwark Plan 2007 and Strategic Policy 13 High Environmental Standards of the Core Strategy 2011.

- 53 Communal amenity space
All residents within a building shall have equal access to the proposed communal amenity areas associated with their building.

Reason

To ensure all tenures have equal access to the communal amenity areas in accordance with Appendix 6 of the Aylesbury Area Action Plan, Policies 3.2 Protection of amenity and 4.2 Quality of residential accommodation of the Southwark Plan and Strategic Policy 13 - High environmental standards of the Core Strategy 2011.

- 54 Telecommunications
Notwithstanding the provisions of Part 16 of The Town & Country Planning (General Permitted Development) Order 2015 (as amended) no external telecommunications equipment or structures shall be placed on the roof or any other part of a building(s) within a Plot without the prior written consent of the Local Planning Authority.

Reason

In order to ensure that no telecommunications plant or equipment which might be detrimental to the design and appearance of the building and visual amenity of the area is installed on the roof of the building in accordance with Policies 3.13 Urban Design of the Southwark Plan 2007 and Strategic Policy 12 - Design and conservation of the Core Strategy 2011.

- 55 Roof Plant
No roof plant, equipment or other structures, other than as approved pursuant to a condition of this permission, shall be placed on the roof or be permitted to project above the roofline of any part of the building[s] or shall be

permitted to extend outside of the roof plant enclosure[s] or any building[s] hereby permitted without the prior written consent of the Local Planning Authority.

Reason:

In order to ensure that no additional plant is placed on the roof of the building in the interest of the appearance and design of the building and the visual amenity of the area in accordance with Policies 3.2 'Protection of Amenity' and 3.13 'Urban Design' of the Southwark Plan 2007 and Strategic Policy 12 Design and conservation of the Core Strategy 2011.

56 Internally Illuminated Signs

Any internally illuminated lighting fixtures on any facade of the development that faces towards habitable rooms shall not exceed a surface brightness of 350 candelas/m² between the hours of 21.00-07.00hrs.

Reason

In the interests of amenity and protection of nearby residents from potential light nuisance, in accordance with The National Planning Policy Framework 2012, Strategic Policy 12 Design and Conservation and Strategic Policy 13 High environmental standards of The Core Strategy 2011 and Saved Policies 3.2 Protection of Amenity and 3.14 Designing out crime of the Southwark Plan 2007

57 External Lighting

Any external lighting system installed at the development shall comply with the Institute of Lighting Professionals (ILE) Guidance for the Reduction of Obtrusive Light (January 2012) (as amended) unless otherwise approved in writing.

Reason

In the interest of the visual amenity of the area, the amenity and privacy of adjoining occupiers, and their protection from light nuisance, in accordance with The National Planning Policy Framework 2012, Strategic Policy 12 Design and Conservation and Strategic Policy 13 High environmental standards of The Core Strategy 2011 and Saved Policies 3.2 Protection of Amenity and 3.14 Designing out crime of the Southwark Plan 2007.

58 Refuse Storage

The details of the facilities for the sorting, storing and recycling of refuse shall be provided and made available for use before occupation of the relevant Plot and shall thereafter be retained and the space and facilities designated for refuse storage shall not be used for any other purpose.

Reason

To ensure that the refuse will be appropriately stored within the site thereby protecting the amenity of the site and the area in general from litter, odour and potential vermin and pest nuisance in accordance with The National Planning Policy Framework 2012, Strategic Policy 13 High Environmental Standards of the Core Strategy 2011 and Saved Policies 3.2 Protection of Amenity and Policy 3.7 Waste Reduction of The Southwark Plan 2007

59 Underground Car-park Extract Ventilation

Any proposed underground car park area/s shall be fitted with an extract ventilation system that will achieve the standards set out in BS 7346-7:2013 'Components for smoke and heat control systems. Code of practice on functional recommendations and calculation methods for smoke and heat control systems for covered car parks' and Building Regulations Approved Document F, unless otherwise approved in writing by the Local Planning Authority.

Reason

In order to ensure that that the ventilation ducting and ancillary equipment will not result in odour, fume or noise nuisance and will not detract from the appearance of the building in the interests of amenity in accordance with The National Planning Policy Framework 2012, Strategic Policy 13 - High Environmental Standards of The Core Strategy 2011 and Saved Policy 3.2 Protection of Amenity of The Southwark Plan 2007.

60 CHP Plant - Emissions Reporting

Once commissioned, the CHP plant stack emissions shall be monitored and analysed annually to ensure compliance with the emissions standard. The result reports shall be available and submitted to the LPA on request.

Reason

To ensure the proposal minimises its impact on air quality in accordance with The National Planning Policy Framework 2012, Strategic Policy 13 High Environmental Standards of the Core Strategy 2011 and Saved Policies 3.3 Sustainability Assessment, 3.4 Energy Efficiency and 3.6 Air Quality of the Southwark Plan 2007.

61 Commercial Kitchen Extract Ventilation

The kitchen extract systems for any commercial kitchen within the development shall meet the standard required by DEFRA Guidance on 'The control of odour and noise from commercial kitchen exhaust systems' (2011) unless otherwise agreed in writing by the Local Planning Authority.

Reason

In order to ensure that that the ventilation ducting and ancillary equipment will not result in odour, fume or noise nuisance and will not detract from the appearance of the building in the interests of amenity in accordance with The National Planning Policy Framework 2012, Strategic Policy 13 - High Environmental Standards of The Core Strategy 2011 and Saved Policy 3.2 Protection of Amenity of The Southwark Plan 2007.

62 CHP Plant - Emissions standard

The CHP plant shall use natural gas and meet the relevant standard for its size as stated in Appendix 7 of the London Mayor's Supplementary Planning Guidance on Sustainable Design and Construction unless otherwise agreed in writing.

Reason

To ensure the proposal minimises its impact on air quality in accordance with The National Planning Policy Framework 2012, Strategic Policy 13 High Environmental Standards of the Core Strategy 2011 and Saved Policies 3.3 Sustainability Assessment, 3.4 Energy Efficiency and 3.6 Air Quality of the Southwark Plan 2007.

63 CHP Plant - Management Plan

The CHP plant shall have a valid and up to date management plan which details the parties responsible for the maintenance, monitoring and operation of the installed plant and details as to how they will communicate with and inform each other about issues relevant to the effective operation of the CHP. The management plan shall be available and submitted to the Local Planning Authority on request.

Reason

To ensure the proposal minimises its impact on air quality in accordance with The National Planning Policy Framework 2012, Strategic Policy 13 High Environmental Standards of the Core Strategy 2011 and Saved Policies 3.3 Sustainability Assessment, 3.4 Energy Efficiency and 3.6 Air Quality of the Southwark Plan 2007.

SCHEDULE 2

Land Ownership

Freehold Land

1. The freehold of the land comprised in registered title number TGL 257197 being Land at Aylesbury Estate, Westmoreland Road, London, owned by the Council.
2. The freehold of the land comprised in registered title number SGL 206698 being Ellison House, Albany Road, SE5 0AJ owned by the First Secretary of State.
3. The freehold of the land comprised in registered title number TGL 357041 being land at Albany Road, London, owned by the Council.
4. The freehold of the land comprised in registered title number TGL 271277 being land at The Aylesbury Estate, owned by the Council.
5. The freehold of the land comprised in registered title number SGL 22762 being Newington Lodge, Westmoreland Road, London, owned by the Council.
6. The freehold of the land comprised in registered title number TGL 296169 being part of 1 to 35 Sloane House, Roland Way, London and 1 to 43 Missenden, Roland Way, London and Michael Faraday Primary School, Portland Street, London, owned by the Council
7. The freehold of the land comprised in registered title number TGL 303136 being land at 44 to 255 Missenden, Inville Road, London, 1 to 12 Lees House, Inville Road, London and 1 to 8 Darvell House, Inville Road, London, owned by the Council.
8. The freehold of the land comprised in registered title number TGL 303554 being 51, 59, 61 and 67 Inville Road, London, 1 to 8 Chadwell House, Inville Road, London, 300 to 313 Missenden, Inville Road, London and Youth Club, Inville Road, London, owned by the Council.
9. The freehold of the land comprised in registered title number TGL 49796 being 65 Inville Road, Walworth owned by Melvyn Albert Taylor and Janet Taylor.
10. The freehold of the land comprised in registered title number SGL 438952 being 63 Inville Road SE17 2JB owned by Thomas Roy Richards and Susan Anne Richards.
11. The freehold of the land comprised in registered title number TGL 80906 being 57 Inville Road, London, SE17 2JB owned by Jingtian Wei.
12. The freehold of the land comprised in registered title number TGL 8589 being 55 Inville Road, Walworth, SE17 2JB owned by Patricia Jean Platts and Raymond William Brown.
13. The freehold of the land comprised in registered title number SGL 441616 being 53 Inville Road, Walworth, SE17 2JB owned by Robert Dennis Redding and Margaret Matilda Redding.
14. The freehold of the land comprised in registered title number LN80809 being 1-105 Michael Faraday House, Beaconsfield Road, London, 256-299 Missenden, Inville Road, London and 131 Beaconsfield Road, London owned by the Council.
15. The freehold of the land comprised in registered title number TGL 304685 being Flats 241 to 471 Wendover. Thurlow Street, London owned by the Council
16. The freehold of the land comprised in registered title number TGL 303855 being Flat 1 to 81 Ravenstone, Bagshot Street, London, Flat 1 to 30 Foxcote, 150 Albany Road, London, Flat 1 to 25 Padbury, Bagshot Street, London, Flat 1 to 30 Winslow, Kinglake Street, London and Flat 1 to 28 Faversham House, Kinglake Estate, London owned by the Council.

17. The freehold of the land comprised in registered title number SGL 12641 being 140 Albany Road, London, SE5 0DB owned by Khanh Phat Duong, Khanh Dat Duong and Jimmy Duong.
18. The freehold of the land comprised in registered title number TGL 303941 being part of 47 to 53 Bagshot Street, London and land adjoining 140 Albany Road, London owned by the Council.
19. The freehold of the land comprised in registered title number TGL 304566 being Flat 126 to 192, Wolverton, Alvey Street, London, Flat 37 to 72, 116 to 156 and 201 to 240, Wendover, Thurlow Street, London owned by the Council.
20. The freehold of the land comprised in registered title number TGL 304593 being Flat 1 to 14, Brockley House, Sedan Way, London, Flat 85 to 125 Wolverton, Alvey Street, London and part of the building forming 157 to 200 Wendover, Thurlow Street, London owned by the Council.
21. The freehold of the land comprised in registered title number TGL 19098 being part of land and buildings on the west and east side of Merrow Street, London owned by the Council.

Developer's Interest

The Developer has an equitable interest in the Site by virtue of the Development Partnership Agreement under which it has a conditional contract to acquire a long lease of the Site.

SCHEDULE 3
Affordable Housing

1. Affordable Housing

1.1 The provisions of this clause shall come into effect on the Implementation Date.

1.2 The Developer covenants with the Council:

- 1.2.1 to provide at least 4790 Habitable Rooms of Affordable Housing within the Outline Development or provide 50% of the total number of Habitable Rooms as Affordable Housing within the Development, whichever is the greater, pursuant to the Approved Affordable Housing Mix and to include the Social Rented Units, Shared Ownership Units (FDS Development) and Shared Ownership Units (Outline Development).
- 1.2.2 to submit no later than the date of submission of the first Reserved Matters Application to the Council for its approval in writing the Housing Delivery Strategy and thereafter to comply with the approved Housing Delivery Strategy;
- 1.2.3 to submit no later than the date of submission of each subsequent Reserved Matters Application thereafter which includes Dwellings for its approval in writing an updated Housing Delivery Strategy of the Development to date.
- 1.2.4 Not to Implement the relevant Reserved Matters Application or part thereof until the Housing Delivery Strategy for the relevant Development Plot has been approved in writing by the Council.
- 1.2.5 to construct or procure the construction of the Affordable Housing Units as part of the Development upon the Site at no cost to the Council and in accordance with the approved Housing Delivery Strategy, the approved Development Specification for the Applications and the Residential Design Standards Supplementary Planning Document (September 2011) and the Affordable Housing SPD (2008) including any draft and subsequent revisions thereof.
- 1.2.6 Unless otherwise agreed in writing by the Council, the proportion of the Affordable Housing Units to be constructed as Wheelchair Dwellings shall be designed in accordance with the approved Housing Delivery Strategy, the Residential Design Standards Supplementary Planning Document (September 2011) and the Affordable Housing SPD (2008) including any draft and subsequent revisions thereof and the South East London Housing Partnership Wheelchair Housing Design Guidelines or any subsequent revision thereof, or alternative equivalent standard thereto agreed in writing with the Council extant on the Implementation Date and to be constructed in accordance with the obligation in paragraph 12 "Wheelchair Dwellings" below.
- 1.2.7 that the Affordable Housing Units within a Development Stage shall be Practically Completed and available for residential Occupation no later than Occupation of the Remaining Units within a Development Stage and handed over to the Registered Provider upon Practical Completion to a standard fit for residential occupation and the Developer shall not Occupy or permit Occupation of more than 50% of the Remaining Units in a Development Stage nor Dispose (or permit Disposal) of more than 50% of the Remaining Units in a Development Stage unless and until:
 - 1.2.7.1 the Affordable Housing Units in that Development Stage have been constructed on Site and made ready for Occupation in accordance with paragraph 1.2.1 and 1.2.2 to the reasonable satisfaction of the Director of Planning; and

- 1.2.7.2 handed over to the Registered Provider upon Practical Completion; and
- 1.2.7.3 the Developer has entered into a binding agreement to grant a long lease or leases for a term of at least one hundred and twenty five years of the Affordable Housing Units in that Development Stage to the Registered Provider and evidence of such agreement has been provided to the Council.
- 1.2.8 Within three months of the Implementation Date the Developer covenants with the Council that it shall submit to the Director of Planning the name of the chosen Registered Provider (for his approval only in the case of a Registered Provider not on the Council's approved list such approval not to be unreasonably withheld or delayed).
- 1.2.9 Subject to the provisions of clause 8 the Developer covenants with the Council that the Affordable Housing Units shall not be used for purposes other than providing housing accommodation to households or individuals in need of Affordable Housing in the London Borough of Southwark area in perpetuity
- 1.2.10 The Developer covenants to provide no less than 50% of the Habitable Rooms as Affordable Housing on each Development Stage unless there is over provision of the said units on a particular Development Stage of the Development in which case the Affordable Housing to be delivered in a subsequent Development Stage of the Development may be proportionately adjusted to reflect the over-provision in the earlier Development Stage.
- 1.2.11 To deliver the Affordable Housing within each Development Stage of the Outline Development in accordance with the approved Housing Delivery Strategy.

2. Employment and Training

- 2.1 Prior to the Implementation Date, the Developer will appoint a Training and Employment Adviser to provide training and support to facilitate access to construction jobs during the development phase of the Development, and to work closely with NHHT's Construction and Training Initiative ("CTI") Advisor to support apprentices and trainees to gain sustained employment.
- 2.2 the Developer will:
 - 2.2.1 maintain the Training and Employment Adviser's role within their organisation throughout the construction of the Development.
 - 2.2.2 ensure that the Training and Employment Adviser's role includes the following duties:
 - 2.2.2.1 to identify employment vacancies;
 - 2.2.2.2 to commission customised training (that is not currently delivered through mainstream courses) and to identify other revenue funds to deliver appropriate construction training;
 - 2.2.2.3 to provide basic skills and site safety training to suitable candidates;
 - 2.2.2.4 to work with new employees and their employers with the objective of ensuring effective transition into work and job sustainment for at least six months;
 - 2.2.2.5 Prior to or at the same time as submitting each Reserved Matters Application, the Developer shall submit and obtain the written approval of the Council for a Training and Employment Scheme which shall set out the Training and Employment Targets and Requirements for the Reserved Matters Application and how they will be achieved and the Training and Employment Targets and Requirements for each Reserved Matters Application.